

Request for Proposals (RFP) 2025-06
Suffolk County Office of Central Procurement on behalf of the Suffolk County District Attorney's Office
is
Seeking Proposals For
A Developer to Create a Cloud Intranet and Related Staff Portals

Timeline

Advertised/Issue Date:	January 16, 2025
Proposer's Conference: (Non-mandatory)	January 28, 2025 at 11:00 AM Via video conferencing; Pre-Registration required to receive link
Technical Questions Due:	January 30, 2025 by 3:30 PM
Proposal Due Date:	February 21, 2025 by 3:30 PM
Anticipated Term of Contract:	Nine (9) months from contract execution

Contact/Help Information

Need Help? Please contact Bonfire directly at Support@GoBonfire.com for technical questions or issues related to your submission. You can also visit their help forum at <https://bonfirehub.zendesk.com/hc>

Uploading your submission

- Upload your submission at: <https://suffolkcountyny.bonfirehub.com/portal/>
- Logging in and/or uploading your file(s) does not mean your response is submitted. Proposers must successfully upload all the file(s) and MUST click the SUBMIT button before the closing time.
- You will receive an email confirmation receipt with a unique confirmation number once you finalize your submission. This will confirm that you have successfully submitted your proposal.
- Each submitted item of requested information will only be visible to Suffolk County after the closing time.
- If the file you are submitting is required by this RFP, you will not be able to complete your submission until the requirement is met.
- Uploading large documents may take significant time, depending on the size of the file(s) and your Internet connection speed.
- Please note the type and number of files allowed. The maximum upload file size is 1000 MB. Please do not embed any documents within your uploaded files, as they will not be accessible or evaluated.
- Minimum system requirements: Internet Explorer 11, Microsoft Edge, Google Chrome, or Mozilla Firefox. Java Script must be enabled.

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Section I Administrative Information

1. Purpose of RFP

The County of Suffolk ("County"), on behalf of the Suffolk County Department ("Department") set forth on page one, invites proposals ("Proposal(s)") from qualified companies ("Proposer") to provide services ("Services"), as described in Section III, entitled "Technical Requirements."

The term Contractor ("Contractor") shall mean the successful Proposer who may be awarded a contract pursuant to this RFP.

2. Coordinating Departments

a. Prior to Award of Contract

The Suffolk County Office of Central Procurement is responsible for coordinating with the Department regarding the issuance of this RFP:

Suffolk County Office of Central Procurement
335 Yaphank Avenue, Room 103
Yaphank, NY 11980
Tel: (631) 852-5204
Contact: Kathleen Moosmueller, Category Management Coordinator
Email: kathleen.moosmueller@suffolkcountyny.gov

b. After Award of Contract

- i. The Department is responsible for coordinating with the Suffolk County Attorney's Office and the Contractor regarding the negotiation and execution of the contract.
- ii. The County will execute a contract with the Contractor, based on the Model Contract included in this RFP. Note that the Model Contract is subject to negotiation and revision, based on the Department's needs and the approval of the County Attorney's Office.
- iii. The Proposal submitted by the Proposer in response to this RFP, as may be negotiated by the Department, will become the basis for the contract.

c. After Execution of Contract

The Department is responsible for administration of the contract.

3. Background Information

- a. Suffolk County, with a population of 1.5 million, is Long Island's eastern-most county, and covers an area of approximately 900 square miles, 20 miles at its widest part and approximately 86 miles in length.
- b. The County of Suffolk is a municipal corporation of the State of New York with an annual operating budget of approximately \$3.9 billion. The County employs approximately 9,000

employees, with main offices located in Hauppauge, Yaphank, Riverhead, and several smaller locations.

4. Evaluation Committee and Award of Contract

The award of any contract will be made in the best interest of the County, taking into consideration cost as well as technical or other non-cost factors. The Suffolk County Department of Law acts as counsel to the RFP Evaluation Committee, but does not vote in the selection process.

The RFP Evaluation Committee shall include the following:

- a.** Suffolk County Legislature Presiding Officer, or their designee; and
- b.** Suffolk County Executive, or their designee; and
- c.** A second duly authorized representative of the Suffolk County Executive (Budget or Management);
- d.** The Department Head, or their designee, of the Department requesting the RFP; and
- e.** Suffolk County Commissioner of Information Technology, or their designee

5. Questions and Comments

a. Administrative Questions

Administrative questions (e.g., procedural questions on how to respond to this RFP) may be submitted by telephone or in writing (email acceptable) to the Office of Central Procurement staff member listed in paragraph 2 (a) of this section.

b. Technical Questions

Technical questions (questions which are specific to the service requested in this RFP) must be submitted on or before the date set forth on page one of this RFP. Responses to such technical questions will be developed by the requesting Department and issued by the Office of Central Procurement in the form of an Addendum to this RFP.

To contact the Suffolk County Office of Central Procurement or ask questions in relation to this RFP, respondents must register with the Office's Procurement Portal at <https://suffolkcountyny.bonfirehub.com/portal> (the "Portal") and initiate the communication electronically through the "Messages" tab in the left column on Bonfire, then click "Vendor Discussions" to enter your question(s). The County will not accept any respondent's communications by any other means, except as specifically stated in this RFP.

Need Help? Please contact Bonfire directly at Support@GoBonfire.com for technical questions or issues related to your submission. You can also visit their help forum at <https://bonfirehub.zendesk.com/hc>

c. No Direct Contact

No questions or comments should be directed to any County employee or its contractors or any firm currently in contract with the County regarding this RFP during the RFP process, except as set forth in sub-paragraphs 5.a and 5.b above or as may be requested or permitted by the Suffolk County Office of Central Procurement and/or the Suffolk County Department of Law. Failure to comply may result in immediate disqualification.

6. Proposer's Conference

A Proposer's Conference (non-mandatory) will be held via video conference on the date set forth on page one of this RFP.

To register and receive the video conferencing link, please submit your request in the "Vendor Discussions" tab under "Messages" in Bonfire with the subject line "Registering for RFP 2024-2025-06." **Include email address for any/all expected attendees.**

7. Due Date for Proposals

Proposals must be submitted by 3:30 p.m. on the date set forth on page one of this RFP.

In the interest of fairness to all participants, no extensions or exceptions will be permitted, unless issued as an Addendum to this RFP and applicable to all Proposers.

8. Submission of Proposals

Suffolk County no longer will accept hard copies of RFP responses. All submissions must be done online at <https://suffolkcountyny.bonfirehub.com/portal/>.

9. RFP Policies and Procedures

- a.** It is the County's intent to select the Proposer that provides the best solution for the County's needs. In order for the County to conduct a uniform review process of all Proposals, Proposals must be submitted in the format set forth below in the paragraph entitled "Proposal Format." Failure to follow this format may be cause for rejection of a Proposal because adherence to this format is critical for the County's evaluation process.
- b.** The contract will be in the general format set forth in Section VI entitled "Model Contract," but will be subject to final contract negotiations.
- c.** This RFP is not intended, and shall not be construed, to commit the County to pay any costs incurred in connection with any Proposal or to procure or contract for any services.
- d.** As a preliminary step, each Proposal will be examined to determine whether it is responsive to the requirements of this RFP. After such preliminary review, all responsive Proposals will be evaluated.
- e.** The decision to award a contract shall be based on the ability of the Proposer to provide quality and needed services and products and to comply with all applicable laws, rules, and regulations, including without limitation the local preference and other Suffolk County local laws

referenced in the Section entitled "Suffolk County Required Compliance Forms in Accordance with County Laws."

- f. While the County is under no obligation to contact Proposers for clarifications, it reserves the right to do so. Depending on the number and quality of the Proposals submitted, the County, at the sole discretion of the RFP Evaluation Committee, may elect to interview all or some of the Proposers during the selection process and to request presentations.
- g. After evaluating the Proposals, the County may enter into negotiations with one Proposer or multiple Proposers. The primary purpose of negotiations is to maximize the County's ability to obtain the best value based on the mandatory requirements, evaluation criteria, and cost. Multiple rounds of negotiations may be conducted with one Proposer or multiple Proposers. Negotiations will be structured by the County to safeguard information and ensure that all Proposers are treated fairly.
- h. The County may invite one or more Proposers to submit a best and final offer ("BAFO"). Such invitation will establish the time and place for submission of the BAFO. Any BAFO that is not equal to or lower in price than the pricing offered in the Proposer's original Proposal will be rejected as non-responsive and the County will revert to consideration and evaluation of the Proposer's original pricing.
- i. If required, after review of the BAFO(s), clarification may be sought from the Proposer(s). The County may conduct more than one round of negotiations and/or BAFO submissions in order to attain the best value for the County.
- j. The County will not necessarily choose the Proposer(s) with the lowest rates for Services. Based on the evaluation criteria, a competitive range consisting of those Proposals which are acceptable to the County, or which could be made acceptable following written or oral presentations, will be determined.
- k. The award of any contract will be made as judged to be in the best interest of the County.
- l. **Protest Procedures:** Any actual or prospective bidder, offeror, or contractor who is aggrieved in connection with the solicitation or award of a contract may protest to the Chief Procurement Officer ("CPO") who is head of the Office of Central Procurement for Suffolk County. A protest with respect to an invitation for bids or a request for proposals shall be submitted to the CPO in writing and signed by the aggrieved party prior to the opening of bids or the closing date for proposals, unless the aggrieved person did not know and should not have known of the facts giving rise to such protest prior to bid opening or the closing date for proposals. In that case the protest shall be submitted within three (3) calendar days after the aggrieved person knows or should have known of the facts giving rise thereto. A protest with respect to an award from a bid or a request for proposals shall be submitted in writing and signed by the aggrieved party within ten (10) calendar days after the aggrieved person knows or should have known of the facts giving rise thereto.

10. RFP Posted on Bonfire Portal

This RFP is available on-line at: <https://suffolkcountyny.bonfirehub.com/portal/>. By downloading documents for this RFP, you will be notified of all future addendums.

11. Reservation of Rights

The County expressly reserves the right to:

- a. Reject or cancel any or all Proposals or any part thereof submitted in response to this RFP;
- b. Withdraw the RFP at any time, at the County's sole discretion;
- c. Disqualify any Proposer whose conduct and/or Proposal fails to conform to the requirements of the RFP;
- d. Use Proposal information obtained through site visits, management interviews, and the County's investigation of a Proposer's qualifications, experience, ability or financial standing, and any material or information submitted by the Proposer in response to the County request for clarifying information in the course of evaluation and/or selection under this RFP;
- e. Prior to Bid opening, amend the RFP specifications to correct errors, or oversights, or to supply additional information as shall become available;
- f. Prior to Bid opening, direct Proposers to submit Proposal modifications addressing subsequent RFP amendments;
- g. Change any of the dates concerning the RFP award schedule;
- h. Eliminate any mandatory, not-material specification that cannot be complied with by all of the prospective Proposers;
- i. Waive any requirements that are not material;
- j. Award negotiated contracts to one or more Proposers;
- k. Negotiate with the successful Proposer(s) within the scope of the RFP, in the best interest of the County;
- l. Conduct contract negotiations with the next responsible Proposer should the County be unsuccessful in negotiations with the selected Proposer;
- m. Require clarification at any time during the procurement process and/or require correction of arithmetic or other apparent errors for the purpose of assuring a full and complete understanding of a Proposal and/or to determine a Proposer's compliance with the requirements of the RFP.

12. Proposal Format

The following materials are required to be received by the County, by the Proposal Due Date set forth on the first page of this RFP. The topics listed under these general headings are minimum standards and should not be viewed as limitations to the information provided by the Proposer in response to this RFP.

- a. **Transmittal Letter (PDF file uploaded to appropriate section of the Bonfire portal)**

A transmittal letter is a letter on the Proposer's stationery. A corporate officer or an authorized agent of the Proposer must sign the transmittal letter. The transmittal letter must state the contact person who will be responsible for answering all questions of the RFP Evaluation Committee. Include the telephone number and e-mail address for such contact person.

b. Compliance Forms

i. Disqualification of Non-responsible Bidders (LL 52-2012 Form) (2 pages)

LL 52-2012 Form is included in the Section entitled "Suffolk County Required Compliance Forms in Accordance with County Laws."

ii. Suffolk County Form 22 -- Contractor's/Vendor's Public Disclosure Statement (2 pages)

SCEX Form 22 is included in the Section entitled "Suffolk County Required Compliance Forms in Accordance with County Laws."

A corporate officer, or an authorized agent of the Proposer, must sign one (1) original of form and have it notarized.

Please note that any Proposers who are not-for-profit corporations are not required to complete this form.

iii. Non-Collusive Offer Certification (FTS Form) (1 page)

FTS Form is included in the Section entitled "Suffolk County Required Compliance Forms in Accordance with County Laws."

iv. Lawful Hiring Form (LHE-1/2 Form) (1 page)

This form is included in the Section entitled "Suffolk County Required Compliance Forms in Accordance with County Laws."

The Labor Department's Lawful Hiring of Employees Unit may be reached at (631) 853-6600 for specific questions.

v. Living Wage Form (LW1/38 Form) (1 page)

This form is included in the Section entitled "Suffolk County Required Compliance Forms in Accordance with County Laws."

If the Living Wage Law applies and Section I is checked, the chart must be completed.

The Labor Department's Living Wage Unit may be reached at (631) 853-6600 for specific questions.

vi. Suffolk County Union Organizing Certification/Declaration (LO1 Form) (2 pages)

LO1 Form is included in the Section entitled "Suffolk County Required Compliance Forms in Accordance with County Laws."

(Note: this Form will be required only from the Apparent Successful Proposer)

vii. Lobbying Certification Form

This form is included in the Section entitled “Suffolk County Required Compliance Forms in Accordance with County Laws.”

viii. Contractor’s Statement of Applicability of Local Preference Law – Section A4-13 of the Suffolk County Administrative Code (Local Preference Law)

Local Preference Law - Section A4-13 of the Suffolk County Administrative Code establishes a preference program for Suffolk County consulting contracts. This preference program requires all contracts for professional consulting services (engineering, architectural, planning, legal, and accounting, etc.) to be awarded to firms located and doing business within Suffolk or Nassau County, except where no local consultant has the necessary expertise or credentials to provide the needed service, or where the local consultant's response to a Request for Proposals (RFP) exceeds the otherwise lowest response by more than 10%. The local law contains specific definitions and language relative to application of this law which interested parties should review. The laws of Suffolk County are available free of charge at <https://www.ecode360.com/SU0867>.

If applicable, include a statement with the Proposal asserting the applicability of the Local Preference Law. The statement must include the reasons for assertion of the applicability of the Local Preference Law.

c. Proposer Profile/Response to Questions set forth in the RFP Section entitled “Proposer Profile” (Section II)

Proposers’ responses will be used in the County’s evaluation of the Proposers’ general qualifications.

d. Proposer’s Proposed Technical Services/Response to items set forth in the RFP Section entitled “Technical Requirements” (Section III)

This Section will be used in the County’s evaluation of the Proposer’s proposed technical services.

e. List of Subcontractors (if applicable)

Identify all subcontractors the Proposer plans to use and the function for which such subcontractors will be responsible. Provide qualifications, including prior relevant experience, for all subcontractors anticipated to be used (Reference Section II).

Subcontractors must complete all County forms listed above in paragraph 12(b).

Subcontractors must respond to all questions set forth in the RFP Section entitled “Proposer Profile.” This includes financial statements.

Subcontractors must respond to all requirements, to the extent such requirements are applicable to the services they will be providing, set forth in the RFP Section entitled “Technical Requirements.”

Failure to include this information in the Proposal may be grounds for disqualification.

f. Conflict of Interest

Proposers must disclose to the County the existence of any conflicts of interests, whether existing or potential. If none exist, state so. Proposals shall disclose:

- i. Any material financial relationships that the Proposer or any employee of the Proposer has that may create a conflict of interest in acting as a Contractor for Suffolk County.
- ii. Any family relationship that the Proposer or any employee of the Proposer has with any County employee that may create a conflict of interest or the appearance of a conflict of interest acting as a Contractor for Suffolk County.
- iii. Any other matter that the Proposer believes may create a conflict of interest or the appearance of a conflict of interest acting as a Contractor for Suffolk County.

g. Proposer's Cost Proposal/Fee Schedule - Response to items set forth in the RFP Section entitled "Cost Proposal/Fee Schedule" (Section IV)

This Section will be used in the County's evaluation of the Proposer's proposed Cost Proposal/Fee Schedule.

- h.** Proposals shall be prepared avoiding the use of elaborate promotional materials beyond those sufficient to provide a complete, accurate, and reliable presentation. Each response in a Proposal shall clearly identify the section and paragraph number from the RFP to which it responds.

13. Evaluation Criteria

- | | |
|--|-------------------|
| a. General Qualifications: | 40 points |
| Proposer's history, expertise, experience, reliability, financial viability, and references. See RFP Section II, entitled "Proposer's Profile" for specific requirements. | |
| b. Proposed Technical Services/Products: | 40 points |
| Strategies, methodologies, services offered by Proposer. See RFP Section III, entitled "Technical Requirements" for specific requirements. | |
| c. Cost Proposal/Fee Schedule | 20 points |
| Separate PDF file containing your cost proposal uploaded to the appropriate section of the Bonfire portal. See Section IV, entitled "Cost Proposal/Fee Schedule Proposal" for specific requirements. | |
| Total | 100 points |

14. Contract Terms and Conditions

- a. Reference is made to the Model Contract set forth in Section V entitled "Model Contract." The Model Contract is included to illustrate general terms and conditions, including indemnification and insurance, which will be included in the contract when executed.
- b. If the Proposer has a concern or question regarding any of the terms and conditions included in the Model Contract, the Proposer must:
 - i. note such concerns or questions in the Proposal;
 - ii. submit exceptions to the Model Contract in the Proposal; and/or
 - iii. identify any items relating to the Model Contract that the Proposer requests be negotiated.
- c. The Model Contract is subject to revision arising out of the terms and conditions imposed by law and/or deemed appropriate by the County Attorney's Office.
- d. Portions of the Proposal, as may be subsequently modified in negotiations with the County, may be included as exhibits in any contracts that the County may execute with the Proposer.
- e. The County will execute a contract with principal contractors only. Any arrangements, including fee arrangements, partnerships, or collaborations between the principal contractor and subcontractors that provide services as part of the Proposal, must be fully disclosed in the Proposal.
- f. The Proposer should not return the Model Contract with the Proposal.

**15. Use of County Resources to Interfere with Collective Bargaining Activities
Local Law No. 26-2003**

Proposers are advised that the efficient, timely, and nondisruptive provision of goods and services is a paramount financial interest of the County and, as such, the County requires the potential Contractor to protect the County's financial interest by adopting non-confrontational procedures for the orderly resolution of labor disputes, including but not limited to, neutrality agreements, majority authorization card agreements, binding arbitration agreements, fair communication agreements, nonintimidation agreements, and reasonable access agreements.

16. Non-Responsible Bidder

It shall be the duty of the Proposer to read, become familiar with, and comply with the requirements of Article II of Chapter 189 of the Suffolk County Code.

The Proposer certifies that it has complied with the disclosure requirements under section 189-7 of the Suffolk County Code, it is in compliance with all applicable licensing laws, and that it either has not engaged in a prohibited act covered under section 189-5 of the Suffolk County Code or is otherwise exempt from the provisions of Article II of Chapter 189 of the Suffolk County Code under section 189-9.

This certification is required at the time of proposal submission and shall be set forth on the LL52-2012 Form "Disqualification of Non-Responsible Bidder."

17. Effective Period of Proposals

All Proposals must state the period for which the Proposal shall remain in effect (i.e., how much time the County has to accept or reject the Proposal under the terms proposed). Such period shall not be less than 180 days from the Proposal due date.

18. NYS Freedom of Information Law (FOIL)

All submissions for the County's consideration will be held in confidence, until final execution of the contract(s) unless disclosure is required by law or judicial order. Upon execution of the contract, all documents submitted by proposers during the RFP process and the fully executed contract are subject to disclosure pursuant to the New York State Freedom of Information Law (FOIL), codified at Public Officers Law Article 6. Therefore, if a Proposer believes that any information in its submission constitutes a trade secret or is otherwise information which, if disclosed would cause substantial injury to the competitive position of the Proposer's enterprise, and the Proposer wishes such information to be withheld if requested pursuant to FOIL, the Proposer shall segregate such information from its Proposal and submit with its Proposal a separate letter addressed to the primary contact referenced in this RFP, specifically identifying such information, explaining in detail why such information is a trade secret or is information which if disclosed would cause substantial injury to the competitive position of the Proposer's enterprise, and formally requesting that such information be kept confidential. Failure by a Proposer to submit such a letter with its submission will constitute a waiver by the Proposer of any interest in seeking exemption of this information under Article 6 of the Public Officers Law relating to protection of trade secrets. The proprietary nature of the information designated confidential by the Proposer may be subject to disclosure if it is requested and the County deems it subject to disclosure or if ordered by a court of competent jurisdiction. A request that an entire Proposal be kept confidential may not be considered reasonable since a submission cannot reasonably consist of all data exempt from FOIL.

End of Text for Section I

Section II Proposer Profile

1. General Information/Proposer's History

- a. Company name and address.
- b. Year company was founded and history.
- c. Total number of employees in company, and the number of employees at servicing office(s).
- d. Location(s) from which services will be performed.
- e. Describe the nature of your organization (e.g. business corporation, not-for-profit corporation, proprietorship, etc.).
- f. Contact person and title.

2. Qualifications and Experience of Personnel

- a. Provide resumes or detailed descriptions of the account manager and other key staff who will be assigned to this account.
- b. For each professional listed above, describe his/her qualifications and provide information regarding:
 - i. Education;
 - ii. Professional licenses and other affiliations (copies of which shall be submitted with Proposals);
 - iii. Number of years engaged in services relating to the services requested in this RFP;
 - iv. Other relevant work experience or qualifications;
 - v. The role each identified person would play.
- c. Describe other accounts involving similar services. Describe the role and experience of key personnel assigned to other similar accounts who will be assigned to this account.
- d. If temporary staff is involved, include details of their supervision and training.
- e. Details of the vendor's experience developing intranet pages in the Microsoft 365 environment is ideal. For example, a Microsoft Partner is preferred. Additionally, demonstrable experience with the following: Power Automate, Power Apps, PowerBI, Azure AI Studio, Power Pages, and WordPress.
- e. In addition, the County may make such investigations as it deems necessary to determine the ability of the Proposer to perform the work. The Proposer shall furnish to the County, within five (5) business days of a request, all such information and data for this purpose as may be requested. The County reserves the right to reject any Proposal if the information submitted by, or investigation of such Proposer fails to satisfy the County that such Proposer is properly qualified to carry out the obligations of the contract and to complete the work contemplated therein. Conditional Proposals will not be accepted.

3. Financial Viability

a. Financial Statements – Mandatory for Nongovernmental Agencies

Requirement specifications:

- i. Current financial statement (if current year not available previous calendar year acceptable) prepared and certified by an Independent Certified Public Accountant (CPA) to include:
 - o Balance Sheet
 - o Income Statement
 - o Statement of Cash Flows
 - o Opinion Letter
- ii. If independently audited financial statement is not available, the most current in-house Company statement to include
 - o Balance Sheet
 - o Income Statement
 - o Statement of Cash Flows
 - o Financial Statement to be signed by one of the following attesting to the accuracy of the statement:
 - Chief Executive Officer (CEO)/Chief Financial Officer (CFO)/Chief Operating Officer (COO)
- iii. Failure to submit complete, comprehensive documents may result in disqualification for consideration of an award.

b. Indebtedness to County, Liens, and Litigation

Submit a statement as to indebtedness, if any, to the County; and a listing of all outstanding liens, if any, against the Proposer. Submit a summary of all litigation, if any, against the Proposer and disposition or outcome of same.

c. Statement Regarding Bankruptcy

Include a statement disclosing any bankruptcy(ies) filed within the last seven (7) years. The statement must include the date the bankruptcy was originally filed, the current status, and, if applicable, the date the bankruptcy was discharged.

4. Client History

Provide a list of all clients for whom you have provided similar services within the last three (3) years. For each client, provide the following:

- a. Client name; and
- b. Client address; and
- c. Contact name, title, and telephone number; and

- d. Description of services provided and time period.

5. References

- a. From the list provided in response to paragraph 4, entitled "Client History," provide three client references for which you have provided services (current governmental or quasi-governmental client agencies preferred). Provide name of the organization, services, contact name, telephone number, and email address. Ideally, references will be able to provide feedback regarding proposer's experience and success with the services listed below in "**Technical Services Specifications (Detailed Scope of Services.**"
- b. Provide a list of all contracts with the County of Suffolk within the last five (5) years (regardless of type of service), the time period for those services and your primary County contact.

6. Conflicts of Interest and/or Potential Conflicts of Interest

a. Relationships with Third Parties

The Contractor is charged with the continuing duty to disclose to the County the existence of any interests it may have, contractual or otherwise, ongoing or previous, with any companies or individuals with whom the County of Suffolk does business with respect to the services required by this RFP. This duty continues for so long as the Contractor is retained on behalf of the County or its employees.

b. Relationships with County Departments/Agencies/Employees

The Contractor is charged with the continuing duty to disclose to the County the existence of any interests it may have, contractual or otherwise, ongoing or previous, with any County department, agency or employee. This duty continues for so long as the Contractor is retained on behalf of the County or its employees.

7. Subcontractors

If you intend to use the services of a subcontractor, please provide all of the above information in this Section for each such subcontractor.

Note that the County must pre-approve the use of any subcontractors.

End of Text for Section II

Section III Technical Requirements

1. Background and Overview of Desired Services

The Suffolk County District Attorney's Office (SCDA) is searching for a contractor or vendor to design, build, and assist in building a cloud intranet portal incorporating Artificial Intelligence (AI) and automation applications in their Azure environment. The SCDA, switching to an independent 365 tenancy and Azure environment, is seeking to maximize usage of different Microsoft-engine platforms in building a cloud intranet for attorney and investigative staff.

The SCDA is one of the largest prosecutorial agencies in the United States, consisting of hundreds of staff with a jurisdiction spanning thousands of square miles consisting of most of the eastern half of Long Island, New York. The SCDA handles a wide variety of criminal cases, with high case loads and strict discovery law requirements. In doing so, the SCDA strives for the greatest efficacy, efficiency, and highest quality result. Therefore, the SCDA seeks to create a centralized portal for all staff to utilize to access practice tools and agency information, utilizing best practices and leveraging the SCDA Azure environment.

2. Minimum Requirements for Technical Services Proposals

a. Understanding of the Project

The Proposal must include a statement of work that describes the Proposer's understanding of the Project. The Proposer is expected to discuss its understanding of the proposed "Scope of Work."

- i. The complexity, challenges and problems involved in performing the work.
- ii. Approach and philosophy for dealing with problems.
- iii. Experience dealing with key issues.
- iv. Any additional issues or matters relating to the "Scope of Work" which the Proposer wishes to address.

b. Key Personnel and Staffing

Key personnel identified in the Proposal will be expected to remain assigned to the project for the term of the contract. Requests for a change in key personnel assignments during the term of the contract must be approved in advance, in writing, by the County. The Proposal should also include a discussion that outlines staffing levels/man-hour requirements that should be expected on the County level to support the implementation and day-to-day operation of the project. This information will be a recommendation only for discussion purposes. The Proposer should

describe other potential burdens that may be placed on the County with respect to the servicing of the account.

c. Subcontractors

Services that are to be subcontracted must be clearly defined in the Proposal. The Contractor retains responsibility for all acts and omissions of the subcontractor. The Contractor must obtain the prior approval from the Department for all subcontracts.

Subcontractors must respond to all requirements set forth above in this Section, to the extent such requirements are applicable to the services they will be providing.

The County may require that subcontracted activities be provided under the terms of a three-party contract between the Contractor, the County and the subcontractor.

3. Technical Services Specifications (Detailed Scope of Services)

The SCDA is seeking a highly-skilled Contractor with demonstrable experience working with Azure and creating bespoke cloud-based intranet or webpage solutions within an Azure environment aimed at internal staff usage. This experience should include, but not be limited to, Azure AI Studio applications, such as involving Azure AI Vision, Power Automate, and Power Apps. Experience with government, legal, and/or law enforcement organizations is preferred. The contractor needs to be able to create turn-key or near-turn-key solutions with minimal assistance from County or Department staff. The Contractor will be expected to make the determination of implementation method and consult the Agency on this decision as well as the steps towards implementation.

This project will consist of creating the cloud intranet portal, either through Power Apps or similar, that will either be standalone or integrate with the Department's new website built on the WordPress platform. The intranet will include Copilot LLM chatbot functionality for searches, be ready for integration with future Copilot, OCR, and other AI Azure solutions, have existing on-premises applications migrated over, and integrate the cloud intranet site with existing robot process automation (RPA) processes. It will also have several function-specific portals for staff to use, division and role based, such as an intranet portal page for archiving and facilities management. The Contractor must be familiar and comfortable with strong security protocols, and designing projects around personally-identifiable information (PII) and confidential information. The Department requires the utilization of closed-system solutions for generative AI applications in compliance with legal ethics standards. Additionally, the Contractor shall be familiar with RPA and API integrations with third-party cloud based software platforms, such as case management systems, and will be expected to work with any RPA vendor in the

implementation of solutions. The Contractor needs experience with C# and SQL software applications to complete the migration of on-premises applications.

End of Text for Section III

Section IV Cost Proposal/Fee Schedule

1. Separate File

Do not include cost information in the body of your Proposal response. Create a separate PDF file containing your Cost Proposal and upload it to appropriate section on the Bonfire portal. Include the name of your company on each page of your Cost Proposal/Fee Schedule.

2. Cost Proposal/Fee Schedule is One of Several Evaluation Criteria

Based on the evaluation criteria set forth in Section I entitled "Administrative Information," paragraph 13 ("Evaluation Criteria"), please note that the County will not necessarily choose the Proposer with the lowest rates for services.

If the Cost Proposal/Fee Schedule involves revenue in any form to the County, please also note that the County will not necessarily choose the Proposer with the highest rates for revenue to the County.

3. Additional Information

The Proposer should provide any additional information it deems necessary to explain or clarify its Cost Proposal/Fee Schedule.

4. Alternative Proposals

The Proposer may submit alternative Technical Proposals and alternative Cost Proposal/Fee Schedules, if there is more than one viable approach to performing the services.

Proposers must supply Cost Proposal/Fee Schedules in the format set forth below. Cost Proposal/Fee Schedules in alternative formats will be reviewed and may be accepted. However, all Proposers, at a minimum, must provide a Cost Proposal/Fee Schedule in the format set forth below. Proposers are requested to submit any additional information, charts, data and descriptions as the Proposer deems necessary for evaluation.

5. Format for Cost Proposal/Fee Schedule

Proposers shall provide a detailed list for anticipated charges it will impose for items that shall or may apply to the Services requested under this RFP. Failure to include a charge or schedules of charges may preclude the Contractor from billing the County for such non-specified items.

All schedules submitted must include the name of the Proposer and must be paginated.

The anticipated term of the Contract is: **Nine (9) Months**

COST PROPOSAL FORMAT

The Cost Proposal and Fee Schedule shall provide overall cost, broken down per phase.

Planning Phase	_____
Development Phase	_____
System Admin Handover Phase	_____
TOTAL PROJECT COST:	_____

- * Team member title and hourly rate for each Contractor staff member(s) and anticipated hours per title per phase should also be provided as back-up for the proposed Costs
- * Contractor should include estimated duration of each project phase
- * Proposed costs should include all travel/expenses

End of Text for Section IV

Section V Model Contract

Consultant/Personal Services Contract

This Contract (“the Contract”) is between the County of Suffolk (“the County”), a municipal corporation of the State of New York, acting through its duly constituted Department of (Insert Name) (“the Department”), located at Insert Address; and

Insert Name of Contractor (“the Contractor”), having an address at Insert Address.

The Contractor has been designated to receive funds from the County for Insert Description (“the Services”) as set forth in Article I, entitled “Description of Services.”

Term of the Contract:

Total Cost of the Contract: Shall not exceed \$x,000.00, as set forth in Article II, attached.

Terms and Conditions: Shall be as set forth in Articles I and II and Exhibits 1 and 2, attached hereto and made a part hereof.

In Witness Whereof, the parties hereto have executed the Contract as of the latest date written below.

Name of Contractor

By: _____
Name
Title
Fed. Tax ID #
Date _____

COUNTY OF SUFFOLK

By: _____
Kevin B. Molloy
Chief Deputy County Executive
Date _____

Approved as to Form:
Christopher J. Clayton
Acting County Attorney

Approved:
Department

By: _____
Name
Assistant County Attorney
Date _____

By: _____
Name
Commissioner
Date _____

List of Articles & Exhibits

Article I

Description of Services

1. Conflicting Provisions
2. Services

Article II

Financial Terms and Conditions

1. Conflicting Provisions
2. General Payment Terms
3. Agreement Subject to Appropriation of Funds
4. Accounting Procedures
5. Audit
6. Comptroller's Rules and Regulations for Consultant's Agreements
7. Specific Payment Terms and Conditions

Exhibit 1

County Terms and Conditions

1. Elements of Interpretation
2. Meanings of Terms
3. Contractor Responsibilities
4. Qualifications, Licenses, and Professional Standards
5. Notifications
6. Documentation of Professional Standards
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6. Prohibition Against Contracting with Corporations that Reincorporate Overseas
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8. Non Responsible Bidder
9. Use of Funds in Prosecution of Civil Actions Prohibited
10. Youth Sports
11. Work Experience Participation
12. Safeguarding Personal Information of Minors
13. Contract Agency Performance Measures and Reporting Requirements
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16. Notification of Cyber Security Breach

Exhibit 3

Information Technology Provisions

1. County Computer Network Security
2. Data Security
3. Standard of Care
4. Information Security
5. Security Breach Procedures
6. Oversight of Security Compliance
7. Data Ownership
8. Data Protection and Transmission
9. Warranties and Deliverables
10. Software License Grany
11. Product Acceptance
12. Audit of Licensed Product Uses

- 13. Ownership/Title to Project Deliverables
- 14. No Hardstop/Passive License Monitoring
- 15. Source Code Escrow for Licensed Product
- 16. Additional Insurance Requirements
- 17. Transition
- 18. Dispute Resolution
- 19. Change Orders

End of List of Articles & Exhibits

Article I

Description of Services

Whereas, the County issued a Request for Proposals (“RFP”) on [DATE]; and

Whereas, the Contractor submitted a proposal in response to such RFP; and

Whereas, the County has selected the Contractor to provide the services as set forth herein;

Now Therefore, in consideration of the mutual provisions and covenants hereafter set forth, the parties hereto agree as follows:

1. Conflicting Provisions

In the event of any conflict between this **Article I** and any other provision to this Contract, such other provision shall prevail unless it is expressly stated that this **Article I** shall prevail.

2. Services

[DEPARTMENT TO INSERT SPECIFIC DESCRIPTION OF SERVICES]

End of Text for Article I

Article II Financial Terms and Conditions

1. Conflicting Provisions

In the event of any conflict between any provision in this Article II and an exhibit to this Contract, the exhibit shall prevail, unless it is expressly stated in the conflicting provision in this Article II that it shall prevail over the exhibit.

2. General Payment Terms

a. Presentation of Suffolk County Payment Voucher

In order for payment to be made by the County to the Contractor for the Services, the Contractor shall prepare and present a Suffolk County Payment Voucher (Voucher), which shall be documented by sufficient, competent and evidential matter. Each Suffolk County Payment Voucher submitted for payment is subject to Audit at any time during the Term or any extension thereof. This provision shall survive expiration or termination of this Contract for a period of not less than seven (7) years, and access to records shall be as set forth in paragraph 31 of Exhibit 1, and paragraph 4(b) of Article II.

b. Voucher Documentation

The Suffolk County Payment Voucher shall list all information regarding the Services and other items for which expenditures have been or will be made in accordance with the Contract. Either upon execution of the Contract (for the Services already rendered and expenditures already made), or not more than thirty (30) days after the expenditures were made, and in no event after the 31st day of January following the end of each year of the Contract, the Contractor shall furnish the County with detailed documentation in support of the payment for the Services or expenditures under the Contract, e.g., dates of the Service, worksite locations, activities, hours worked, and pay rates for all Services. The Suffolk County Payment Voucher shall include time records, certified by the Contractor as true and accurate, of all personnel for whom expenditures are claimed during the period. All Suffolk County Payment Vouchers must bear a signature as that term is defined pursuant to New York State General Construction Law § 46 by duly authorized persons. Disbursements made by the Contractor in accordance with the Contract and submitted for reimbursement must be documented and must comply with accounting procedures as set forth by the Suffolk County Department of Audit and Control.

c. Payment by County

Payment by the County shall be made within thirty (30) days after approval of the Voucher by the Comptroller.

d. Final Voucher

The acceptance by the Contractor of payment of all billings made on an approved voucher shall operate as and shall be a release of the County from all claims by the Contractor through the date of the Voucher.

3. Subject to Appropriation of Funds

- a.** The Contract is subject to the amount of funds appropriated each fiscal year and any subsequent modifications thereof by the County Legislature and no liability shall be incurred by the County beyond the amount of funds appropriated each fiscal year by the County Legislature for the Services.
- b.** If the County fails to receive Federal or State funds originally intended to pay for the Services, or to reimburse the County, in whole or in part, for payments made for the Services, the County shall have the sole and exclusive right to:
 - i.)** determine how to pay for the Services;
 - ii.)** determine future payments to the Contractor; and
 - iii.)** determine what amounts, if any, are reimbursable to the County by the Contractor and the terms and conditions under which such reimbursement shall be paid.

4. Accounting Procedures

- a.** The Contractor shall maintain accounts, books, records, documents, other evidence, and accounting procedures and practices which sufficiently and properly reflect all direct and indirect costs of any nature expended in the performance of the Contract, in accordance with generally accepted accounting principles and with rules, regulations and financial directives, as may be promulgated by the Suffolk County Department of Audit and Control and the Department. The Contractor shall permit inspection and audit of such accounts, books, records, documents and other evidence by the Department and the Suffolk County Comptroller, or their representatives, as often as, in their judgment, such inspection is deemed necessary. Such right of inspection and audit as set forth in subparagraph **(b)** below shall exist during the Term and for a period of seven (7) years after expiration or termination of the Contract.
- b.** The Contractor shall retain all accounts, books, records, and other documents relevant to the Contract for seven (7) years after final payment is made by the County. Federal, State, and/or County auditors and any persons duly authorized by the County shall have full access and the right to examine any of said materials during said period. Such access is granted notwithstanding any exemption from disclosure that may be claimed for those records which are subject to nondisclosure agreements, trade secrets and commercial information or financial information that is privileged or confidential.

5. Audit

- a.** All payments made under the Contract are subject to audit by the Comptroller pursuant to Article V of the Suffolk County Charter. The Contractor further agrees that the Comptroller and the Department shall have access to and the right to examine, audit, excerpt, copy or transcribe any

pertinent transactions or other records relating to Services under the Contract. If such an audit discloses overpayments by the County to the Contractor, within thirty (30) days after the issuance of an official audit report by the Comptroller or his duly designated representatives, the Contractor shall repay the amount of such overpayment by check to the order of the Suffolk County Comptroller or shall submit a proposed plan of repayment to the Comptroller. If there is no response, or if satisfactory repayments are not made, the County may recoup overpayments from any amounts due or becoming due to the Contractor from the County under the Contract or any other Fund Source.

- b. The provisions of this paragraph shall survive the expiration or termination of the Contract for a period of seven (7) years, and access to records shall be as set forth in paragraph 31 of Exhibit 1, and paragraph 4(b) of Article II.

6. Comptroller's Rules and Regulations for Consultant's Agreements

The Contractor shall comply with the "Comptroller's Rules and Regulations for Consultant's Agreements" as promulgated by the Department of Audit and Control of Suffolk County and any amendments thereto during the Term of the Contract. The "Comptroller's Rules and Regulations for Consultant's Agreements" may be viewed online at the County's website, SuffolkCountyNY.gov; go to "Government," then "Comptroller," then "Consultant's Agreements."

7. Specific Payment Terms and Conditions

[DEPARTMENT TO INSERT SPECIFIC TERMS AND CONDITIONS.]

End of Text for Article II

Exhibit 1
County Terms and Conditions

1. Elements of Interpretation

As used throughout the Contract:

a. Words of the masculine gender shall mean and include correlative words of the feminine and neuter genders and words importing the singular number shall mean and include the plural number and vice versa. Words importing persons shall include firms, associations, partnerships (including limited partnerships), trusts, corporations and other legal entities, including public bodies, as well as natural persons, and shall include successors and assigns.

b. Capitalized terms used, but not otherwise defined herein, shall have the meanings assigned to them in the Contract.

2. Meanings of Terms

As used in the Contract:

“Comptroller” means the Comptroller of the County of Suffolk.

“Contract” means all terms and conditions herein forming all rights and obligations of the Contractor and the County.

“Contractor” means the signatory person, partnership, corporation, association or other entity, its officers, officials, employees, agents, servants, sub-contractors, volunteers, and any successor or assign of any one or more of the foregoing performing the Services.

“County” means the County of Suffolk, its departments, and agencies.

“County Attorney” means the County Attorney of the County of Suffolk.

“Department” means the signatory department approving the Contract.

“Engineering Services” means the definition of the practice of engineering and the definition of practice of land surveying, as the case may be, under Section 7201 and Section 7203 of the State Education Law, respectively.

“Event of Default” means

a. the Contractor’s failure to perform any duty required of it under paragraphs 4 through 7 of this Exhibit 1 of the Contract; or

b. the Contractor’s failure to maintain the amount and types of insurance with an authorized insurer as required by the Contract; or

c. the Contractor’s failure to maintain insurance required by the Contract with an insurer that has designated the New York Superintendent of Insurance as its lawful agent for service of process; or

d. The Contractor’s failure to comply with any Federal, State or local law, rule, or regulation, and County policies or directives; or

e. The Contractor’s bankruptcy or insolvency; or

f. The Contractor’s failure to cooperate in an Audit; or

g. The Contractor’s falsification of records or reports, misuse of funds, or malfeasance or nonfeasance in financial record keeping arising out of, or in connection with, any contract with the County; or

h. The Contractor’s failure to submit, or failure to timely submit, documentation to obtain Federal or State funds; or

i. The inability of the County or the Contractor to obtain Federal or State funds due to any act or omission of the Contractor; or

j. Any condition the County determines, in its sole discretion, that is dangerous.

“Federal” means the United States government, its departments and agencies.

“Fund Source” means any direct or indirect sum payable to the Contractor by the County pursuant to any lawful obligation.

“Legislature” means the Legislature of the County of Suffolk.

“Services” means all that which the Contractor must do, and any part thereof arising out of, or in connection with, the Contract as described in **Article I** “Description of Services.”

“State” means the State of New York.

“Suffolk County Payment Voucher” means the document authorized and required by the Comptroller for release of payment.

“Term” means the time period set forth on page one of the Contract and, if exercised by the County, the option period.

3. Contractor Responsibilities

a. It shall be the duty of the Contractor to discharge, or cause to be discharged, all of its responsibilities, and to administer funds received in the interest of the County in accordance with the provisions of the Contract.

- b. The Contractor shall promptly take all action as may be necessary to render the Services.
- c. The Contractor shall not take any action that is inconsistent with the provisions of the Contract.
- d. Services provided under this Contract shall be open to all residents of the County.

4. Qualifications, Licenses, and Professional Standards

- a. The Contractor represents and warrants that it has, and shall continuously possess, during the Term, the required licensing, education, knowledge, experience, and character necessary to qualify it to render the Services.
- b. The Contractor shall continuously have during the Term all required authorizations, certificates, certifications, registrations, licenses, permits, and other approvals required by Federal, State, County, or local authorities necessary to qualify it to render the Services.

Notifications

- a. The Contractor shall immediately notify the County, in writing, of any disciplinary proceedings, commenced or pending, with any authority relating to a license held by any person necessary to qualify him or the Contractor to perform the Services.
- b. In the event that a person is no longer licensed to perform the Services, the Contractor must immediately notify the County, but in no event shall such notification be later than five (5) days after a license holder has lost the license required to qualify the license holder or the Contractor to perform the Services.
- c. In the event that the Contractor is not able to perform the Services due to a loss of license, the Contractor shall not be reimbursed for the Services rendered after the effective date of termination of such license. Without limiting the generality of the foregoing, if any part of the Contract remains to be performed, and the termination of the license does not affect the Contractor's ability to render the Services, every other term and provision of the Contract shall be valid and enforceable to the fullest extent permitted by law.

6. Documentation of Professional Standards

The Contractor shall maintain on file, in one location in Suffolk County, all records that demonstrate that it has complied with paragraphs 4 and 5 above. The address of the location of the aforesaid records and documents shall be provided to the County no later than the date of execution of the Contract. Such documentation shall be kept, maintained, and available for inspection by the County upon twenty-four (24) hours' notice.

7. Credentialing

- a. In the event that the Department, or any division thereof, maintains a credentialing process to qualify the Contractor to render the Services, the Contractor shall complete the required credentialing process. In the event that any State credential, registration, certification, or license, Drug Enforcement Agency registration, or Medicare or Medicaid certification is restricted, suspended, or temporarily or permanently revoked, it is the duty of the Contractor to contact the Department, or division thereof, as the case may be, in writing, no later than three (3) days after such restriction, suspension, or revocation.

- b. The Contractor shall forward to the Department, or division thereof, as the case may be, on or before July 1 of each year during the Term, a complete list of the names and addresses of all persons providing the Services, as well as their respective areas of certification, credentialing, registration, and licensing.

Engineering Certificate

In the event that the Contract requires any Engineering Services, the Contractor shall submit to the County, no later than the due date for submission for approval of any engineering work product, the Certificate of Authorization ("Certificate"), issued pursuant to § 7210 of the New York Education Law, of every person performing any Engineering Services. The failure to file, submit or maintain the Certificate shall be grounds for rejection of any engineering work product submitted for approval.

9. Termination

a. Thirty Days Termination

The County shall have the right to terminate the Contract without cause, for any reason, at any time, upon such terms and conditions it deems appropriate, provided, however, that no such termination shall be effective unless the Contractor is given at least thirty (30) days' notice.

b. Event of Default; Termination on Notice

- i.) The County may immediately terminate the Contract, for cause, upon such terms and conditions it deems appropriate, in the Event of Default, as defined hereinabove.
- ii.) If the Contractor defaults under any other provision of the Contract, the County may terminate the Contract, on not less than five (5) days' notice, upon such terms and conditions it deems appropriate.

c. Termination Notice

Any notice providing for termination shall be delivered as provided for in paragraph 33 of this Exhibit 1.

d. Duties upon Termination

i.) The Contractor shall discontinue the Services as directed in the termination notice.

ii.) Subject to any defenses available to it, the County shall pay the Contractor for the Services rendered through the date of termination.

iii.) The County shall be released from any and all liability under the Contract, effective as of the date of the termination notice.

iv.) Upon termination, the Contractor shall reimburse the County the balance of any funds advanced to the Contractor by the County no later than thirty (30) days after termination of the Contract. The provisions of this subparagraph shall survive the expiration or termination of the Contract.

v.) Nothing contained in this paragraph shall be construed as a limitation on the County's rights set forth in paragraphs 5(c) and 15 of this **Exhibit 1**.

10. Indemnification and Defense

a. The Contractor shall protect, indemnify, and hold harmless the County, its agents, servants, officials, and employees from and against all liabilities, fines, penalties, actions, damages, claims, demands, judgments, losses, suits or actions, costs, and expenses caused by the negligence or any acts or omissions of the Contractor, including reimbursement of the cost of reasonable attorneys' fees incurred by the County, its agents, servants, officials, and employees in any action or proceeding arising out of or in connection with the Contract.

b. The Contractor hereby represents and warrants that it will not infringe upon any copyright in performing the Services. The Contractor agrees that it shall protect, indemnify, and hold harmless the County, its agents, servants, officials, and employees from and against all liabilities, fines, penalties, actions, damages, claims, demands, judgments, losses, suits or actions, costs, and expenses arising out of any claim asserted for infringement of copyright, including reimbursement of the cost of reasonable attorneys' fees incurred by the County, its agents, servants, officials, and employees in any action or proceeding arising out of or in connection with any claim asserted for infringement of copyright.

c. The Contractor shall defend the County, its agents, servants, officials, and employees in any proceeding or action, including appeals, arising out of, or in connection with, the Contract, and any copyright infringement proceeding or action. Alternatively, at the County's option, the County may defend any such proceeding or action and require the Contractor to pay reasonable attorneys' fees or salary costs of County employees of the Department of Law for the defense of any such suit.

11. Insurance

a. The Contractor shall continuously maintain, during the Term of the Contract, insurance in amounts and types as follows:

i.) **Commercial General Liability** insurance, including contractual liability coverage, in an amount not less than Two Million Dollars (\$2,000,000.00) per occurrence for bodily injury and Two Million Dollars (\$2,000,000.00) per occurrence for property damage. The County shall be named an additional insured.

ii.) **Automobile Liability** insurance (if any non-owned or owned vehicles are used by the Contractor in the performance of the Contract) in an amount not less than Five Hundred Thousand Dollars (\$500,000.00) per person, per accident, for bodily injury and not less than One Hundred Thousand Dollars (\$100,000.00) for property damage per occurrence. The County shall be named an additional insured.

iii.) **Workers' Compensation and Employer's Liability** insurance, Disability Benefits insurance, including coverage for Paid Family Leave Benefits, in compliance with all applicable New York State laws and regulations, if required by law. The Contractor shall furnish to the County, prior to its execution of the Contract, the documentation required by the State of New York Workers' Compensation Board of coverage or exemption from coverage pursuant to §§ 57 and 220 of the Workers' Compensation Law. In accordance with General Municipal Law § 108, the Contract shall be void and of no effect unless the Contractor shall provide and maintain coverage during the Term for the benefit of such employees as are required to be covered by the provisions of the Workers' Compensation Law.

iv.) **Professional Liability** insurance in an amount not less than Two Million Dollars (\$2,000,000.00) on either a per-occurrence or claims-made coverage basis.

b. The County may mandate an increase in the liability limits set forth in the immediately preceding paragraphs (11)(a)(i), (ii), and (iv).

c. All policies providing such coverage shall be issued by insurance companies authorized to do business in New York with an A.M. Best rating of A- or better.

d. The Contractor shall furnish to the County, prior to the execution of the Contract, declaration pages for each policy of insurance and certificates, other than a policy for commercial general liability insurance, and upon demand, a true and certified original copy of each such policy evidencing compliance with the aforesaid insurance requirements.

e. In the case of commercial general liability insurance the Contractor shall furnish to the County, prior to the execution of the Contract, a declaration page or insuring agreement and endorsement page evidencing the County's status as an additional insured on said policy, and upon demand, a true and certified original copy of such policy evidencing compliance with the aforesaid insurance requirements.

f. All evidence of insurance shall provide for the County to be notified in writing thirty (30) days prior to any cancellation, nonrenewal, or material change in the policy to which such evidence relates. It shall be the duty of the Contractor to notify the County immediately of any cancellation, nonrenewal, or material change in any insurance policy.

g. In the event the Contractor shall fail to provide evidence of insurance, the County may provide the insurance required in such manner as the County deems appropriate and deduct the cost thereof from a Fund Source.

12. Independent Contractor

1. The Contractor is not, and shall never be, considered an employee of the County for any purpose. Notwithstanding anything herein, the Contract shall not be construed as creating a principal-agent relationship between the County and the Contractor or the Contractor and the County, as the case may be.

13. Severability

It is expressly agreed that if any term or provision of the Contract, or the application thereof to any person or circumstance, shall be held invalid or unenforceable to any extent, the remainder of the Contract, or the application of such term or provision to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be affected thereby, and every other term and provision of the Contract shall be valid and shall be enforced to the fullest extent permitted by law.

14. Merger; No Oral Changes

It is expressly agreed that the Contract represents the entire agreement of the parties and that all previous understandings are herein merged in the Contract. No modification of the Contract shall be valid unless in written form and executed by both parties.

15. Set-Off Rights

The County shall have all of its common law, equitable, and statutory rights of set-off. These rights shall include, but not be limited to, the County's option to withhold from a Fund Source an amount no greater than any moneys due and owing to the County for any reason. The County shall exercise its set-off rights subject to approval by the County Attorney. In cases of set-off pursuant to a Comptroller's audit, the County

shall only exercise such right after the finalization thereof, and only after consultation with the County Attorney.

16. Non-Discrimination in Services and Employment

a. The Contractor shall not, on the grounds of race, creed, color, national origin, sex, age, disability, sexual orientation, military status, or marital status:

i.) deny any individual the Services provided pursuant to the Contract; or

ii.) provide the Services to an individual that is different, or provided in a different manner, from those provided to others pursuant to the Contract; or

iii.) subject an individual to segregation or separate treatment in any matter related to the individual's receipt of the Services provided pursuant to the Contract; or

iv.) restrict an individual in any way from any advantage or privilege enjoyed by others receiving the Services provided pursuant to the Contract; or

v.) treat an individual differently from others in determining whether or not the individual satisfies any eligibility or other requirements or conditions which individuals must meet in order to receive the Services provided pursuant to the Contract; or

vi.) discriminate against employees or applicants for employment.

b. The Contractor shall not utilize criteria or methods of administration which have the effect of subjecting individuals to discrimination because of their race, creed, color, national origin, sex, age, disability, sexual orientation, military status, or marital status, or have the effect of substantially impairing the Contract with respect to individuals of a particular race, creed, color, national origin, sex, age, disability, sexual orientation, military status, or marital status, in determining:

i.) the Services to be provided, or

ii.) the class of individuals to whom, or the situations in which, the Services will be provided; or

iii.) the class of individuals to be afforded an opportunity to receive the Services.

17. Nonsectarian Declaration

The Services performed under the Contract are secular in nature. No funds received pursuant to the Contract shall be used for sectarian purposes or to further the advancement of any religion. The Services will be available to all eligible individuals regardless of religious belief or affiliation.

18. Governing Law

2.

The Contract shall be governed by and construed in accordance with the laws of the State of New York, without regard to conflict of laws. Venue shall be designated in the Supreme Court, Suffolk County, the United States District Court for the Eastern District of New York, or, if appropriate, a court of inferior jurisdiction in Suffolk County.

19. No Waiver

It shall not be construed that any failure or forbearance of the County to enforce any provision of the Contract in any particular instance or instances is a waiver of that provision. Such provision shall otherwise remain in full force and effect, notwithstanding any such failure or forbearance.

20. Conflicts of Interest

The Contractor shall not, during the Term, pursue a course of conduct which would cause a reasonable person to believe that he or she is likely to be engaged in acts that create a substantial conflict between its obligations under the Contract and its private interests. The Contractor is charged with the duty to disclose to the County the existence of any such adverse interests, whether existing or potential. This duty shall continue as long as the Term. The determination as to whether or when a conflict may potentially exist shall ultimately be made by the County Attorney after full disclosure is obtained.

21. Cooperation on Claims

The Contractor and the County shall render diligently to each other, without compensation, any and all cooperation that may be required to defend the other party, its employees and designated representatives against any claim, demand or action that may be brought against the other party, its employees or designated representatives arising out of, or in connection with, the Contract.

22. Confidentiality

Any document of the County, or any document created by the Contractor and used in rendering the Services, shall remain the property of the County and shall be kept confidential in accordance with applicable laws, rules, and regulations.

23. Assignment and Subcontracting

a. The Contractor shall not delegate its duties under the Contract, or assign, transfer, convey, subcontract, sublet, or otherwise dispose of the Contract, or any of its right, title or interest therein, or its power to execute the Contract, or assign all or any portion of the moneys that may be due or become due hereunder, (collectively referred to in this paragraph 23 as "Assignment"), to any other person, entity or thing without the prior written consent of the County, and any attempt to do any of the foregoing without such consent shall be void ab initio.

b. Such Assignment shall be subject to all of the provisions of the Contract and to any other condition the County requires. No approval of any Assignment shall be construed as enlarging any obligation of the County under the terms and provisions of the Contract. No Assignment of the Contract or assumption by any person of any duty of the Contractor under the Contract shall provide for, or otherwise be construed as, releasing the Contractor from any term or provision of the Contract.

24. Changes to Contractor

a. The Contractor may, from time to time, with the County's consent, enter into a Permitted Transfer. For purposes of the Contract, a Permitted Transfer means:

i.) if the Contractor is a partnership, the withdrawal or change, voluntary, involuntary or by operation of law, of the partners, or transfer of partnership interests (other than the purchase of partnership interests by existing partners, by the partnership itself or the immediate family members by reason of gift, sale or devise), or the dissolution of the partnership without immediate reconstitution thereof, and

ii.) if the Contractor is a closely held corporation (i.e. whose stock is not publicly held and not traded through an exchange or over the counter),

1. the dissolution, merger, consolidation or other reorganization of the Contractor,

2. the sale or other transfer of twenty percent (20%) or more of the shares of the Contractor (other than to existing shareholders, the corporation itself or the immediate family members of shareholders by reason of gift, sale or devise).

b. If the Contractor is a not-for-profit corporation, a change of twenty percent (20%) or more of its shares or members shall be deemed a Permitted Transfer.

c. The Contractor shall notify the County in writing, which notice (the "Transfer Notice") shall include:

i.) the proposed effective date of the Permitted Transfer, which shall not be less than thirty (30) days nor more than one hundred eighty (180) days after the date of delivery of the Transfer Notice;

ii.) a summary of the material terms of the proposed Permitted Transfer,

iii.) the name and address of the proposed transferee,

iv.) such information reasonably required by the County, which will enable the County to determine the financial responsibility, character, and reputation of the proposed transferee, nature of the proposed assignee/transferee's business and experience;

v.) all executed forms required pursuant to Exhibit 2 of the Contract, that are required to be submitted by the Contractor; and

vi.) such other information as the County may reasonably require.

d. The County agrees that any request for its consent to a Permitted Transfer shall be granted provided that the transfer does not violate any provision of the Contract, and the transferee has not been convicted of a criminal offense as described under Article II of Chapter 189 of the Suffolk County Code. The County shall grant or deny its consent to any request of a Permitted Transfer within twenty (20) days after delivery to the County of the Transfer Notice, in accordance with the provisions of Paragraph 33 of this **Exhibit 1** of the Contract. If the County shall not give written notice to the Contractor denying its consent to such Permitted Transfer (and setting forth the basis for such denial in reasonable detail) within such 20-day period, then the County shall be deemed to have granted its consent to such Permitted Transfer.

e. Notwithstanding the County's consent,

i.) the terms and conditions of the Contract shall in no way be deemed to have been waived or modified, and

ii.) such consent shall not be deemed consent to any further transfers.

25. No Intended Third Party Beneficiaries

The Contract is entered into solely for the benefit of the County and the Contractor. No third party shall be deemed a beneficiary of the Contract and no third party shall have the right to make any claim or assert any right under the Contract.

26. Certification as to Relationships

The Contractor certifies under penalties of perjury that to the best of its knowledge, other than through the funds provided in the Contract and other valid agreements with the County, there is no known spouse, life partner, business, commercial, economic, or financial relationship with the County or its elected officials. The Contractor also certifies to the best of its knowledge that there is no relationship within the third degree of consanguinity, between the Contractor, any of its partners, members, directors, or shareholders owning five percent (5%) or more of the Contractor, and the County. The foregoing certification shall not apply to a contractor that is a municipal corporation or a government entity.

27. Publications

Any book, article, report, or other publication related to the Services provided pursuant to this Contract shall contain the following statement in clear and legible print:

"This publication is fully or partially funded by the County of Suffolk."

28. Copyrights and Patents

a. Copyrights

Any and all materials generated by or on behalf of the Contractor while performing the Services (including, without limitation, designs, images, video, reports, analyses, manuals, films, tests, tutorials, and any other work product of any kind) and all intellectual property rights relating thereto ("Work Product") are and shall be the sole property of the County. The Contractor hereby assigns to the County its entire right, title and interest, if any, to all Work Product, and agrees to do all acts and execute all documents, and to use its best efforts to ensure that its employees, consultants, subcontractors, vendors and agents do all acts and execute any documents, necessary to vest ownership in the County of any and all Work Product. The Contractor may not secure copyright protection. The County reserves to itself, and the Contractor hereby gives to the County, and to any other person designated by the County, consent to produce, reproduce, publish, translate, display or otherwise use the Work Product. This paragraph shall survive any completion, expiration or termination of this Contract.

The County shall be deemed to be the author of all the Work Product. The Contractor acknowledges that all Work Product shall constitute "work made for hire" under the U.S. copyright laws. To the extent that any Work Product does not constitute a "work made for hire," the Contractor hereby assigns to the County all right, title and interest, including the right, title and interest to reproduce, edit, adapt, modify or otherwise use the Work Product, that the Contractor may have or may hereafter acquire in the Work Product, including all intellectual property rights therein, in any manner or medium throughout the world in perpetuity without compensation. This includes, but is not limited to, the right to reproduce and distribute the Work Product in electronic or optical media, or in CD-ROM, on-line or similar format.

b. Patents

If the Contractor develops, invents, designs or creates any idea, concept, code, processes or other work or materials during the Term, or as a result of any Services performed under the Contract ("patent eligible subject matter"), it shall be the sole property of the County. The Contractor hereby assigns to the County its entire right, title and interest, if any, to all patent eligible subject matter, and agrees to do all acts and execute all documents, and to use its best efforts to ensure that its employees, consultants, subcontractors, vendors and agents do all acts and execute any documents, necessary to vest ownership in the County of any and all patent eligible subject matter. The Contractor may not apply for or secure for itself patent protection. The County reserves to itself, and the Contractor hereby gives to the County, and

to any other person designated by the County, consent to produce or otherwise use any item so discovered and/or the right to secure a patent for the discovery or invention. This paragraph shall survive any completion, expiration or termination of this Contract.

29. Arrears to County

The Contractor warrants that, except as may otherwise be authorized by agreement, it is not in arrears to the County upon any debt, contract, or any other lawful obligation, and is not in default to the County as surety.

30. Lawful Hiring of Employees Law in Connection with Contracts for Construction or Future Construction

In the event that the Contract is subject to the Lawful Hiring of Employees Law of the County of Suffolk, Suffolk County Code Article II of Chapter 353, as more fully set forth in Exhibit 2 entitled "Suffolk County Legislative Requirements," the Contractor shall maintain the documentation mandated to be kept by this law on the construction site at all times. Employee sign-in sheets and register/log books shall be kept on the construction site at all times and all covered employees, as defined in the law, shall be required to sign such sign-in sheets/register/log books to indicate their presence on the construction site during such working hours.

31. Record Retention

The Contractor shall retain all accounts, books, records, and other documents relevant to the Contract for seven (7) years after final payment is made by the County. Federal, State, and/or County auditors and any persons duly authorized by the County shall have full access and the right to examine any of said materials during said period. Such access is granted notwithstanding any exemption from disclosure that may be claimed for those records which are subject to nondisclosure agreements, trade secrets and commercial information or financial information that is privileged or confidential. Without limiting the generality of the foregoing, records directly related to contract expenditures shall be kept for a period of ten (10) years because the statute of limitations for the New York False Claims Act (New York False Claims Act § 192) is ten (10) years.

32. Certification Regarding Lobbying

Together with this Contract and as a condition precedent to its execution by the County, the Contractor shall have executed and delivered to the County the Certification Regarding Lobbying (if payment under this Contract may exceed \$100,000) as required by Federal regulations, and shall promptly advise the County of any material change in any of the information reported on such Certification, and shall otherwise comply with, and shall assist the County in complying with, said regulations as now in effect or as amended during the term of this Contract.

33. Notice

Unless otherwise expressly provided herein, all notices shall be in writing and shall be deemed sufficiently given if sent by regular first class mail and certified mail, or personally delivered during business hours as follows: 1.) to the Contractor at the address on page 1 of the Contract and 2.) to the County at the Department, or as to either of the foregoing, to such other address as the addressee shall have indicated by prior written notice to the addressor. All notices received by the Contractor relating to a legal claim shall be immediately sent to the Department and also to the County Attorney at 100 Veterans Memorial Highway, P.O. Box 6100, (Sixth Floor), Hauppauge, New York, 11788-0099.

End of Text for Exhibit 1

Exhibit 2
Suffolk County Legislative Requirements

NOTE: THE CONTRACTOR'S COMPLETED LEGISLATIVE REQUIREMENTS FORMS REFERENCED HEREIN ARE AVAILABLE ON FILE AT THE DEPARTMENT NAMED ON THE SIGNATURE PAGE OF THIS CONTRACT.

1. Contractor's/Vendor's Public Disclosure Statement

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of section A5-8 of Article V of the Suffolk County Code.

Unless certified by an officer of the Contractor as being exempt from the requirements of section A5-8 of Article V of the Suffolk County Code, the Contractor represents and warrants that it has filed with the Comptroller the verified public disclosure statement required by Suffolk County Administrative Code Article V, Section A5-8 and shall file an update of such statement with the Comptroller on or before the 31st day of January in each year of the Contract's duration. The Contractor acknowledges that such filing is a material, contractual and statutory duty and that the failure to file such statement shall constitute a material breach of the Contract, for which the County shall be entitled, upon a determination that such breach has occurred, to damages, in addition to all other legal remedies, of fifteen percent (15%) of the amount of the Contract.

Required Form:

Suffolk County Form SCEX 22; entitled "Contractor's/Vendor's Public Disclosure Statement"

2. Living Wage Law

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Chapter 575, of the Suffolk County Code.

This Contract is subject to the Living Wage Law of the County of Suffolk. The law requires that, unless specific exemptions apply, all employers (as defined) under service contracts and recipients of County financial assistance, (as defined) shall provide payment of a minimum wage to employees as set forth in the Living Wage Law. Such rate shall be adjusted annually pursuant to the terms of the Suffolk County Living Wage Law of the County of Suffolk. Under the provisions of the Living Wage Law, the County shall have the authority, under appropriate circumstances, to terminate the Contract and to seek other remedies as set forth therein, for violations of this Law.

Required Forms:

Suffolk County Living Wage Form DOL-LW-1/38 (Revised 12/2021) entitled "Suffolk County Department of Labor, LICENSING & CONSUMER AFFAIRS –Notice of Application for County Compensation-LIVING WAGE CERTIFICATION/DECLARATION-SUBJECT TO AUDIT."

3. Use of County Resources to Interfere with Collective Bargaining Activities

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Article I of Chapter 803 of the Suffolk County Code.

County Contractors (as defined by section 803-2) shall comply with all requirements of Chapter 803 of the Suffolk County Code, including the following prohibitions:

a. The Contractor shall not use County funds to assist, promote, or deter union organizing.

b. No County funds shall be used to reimburse the Contractor for any costs incurred to assist, promote, or deter union organizing.

c. No employer shall use County property to hold a meeting with employees or supervisors if the purpose of such meeting is to assist, promote, or deter union organizing.

If the Services are performed on County property, the Contractor must adopt a reasonable access agreement, a neutrality agreement, fair communication agreement, non-intimidation agreement, and a majority authorization card agreement.

If the Services are for the provision of human services and are not to be performed on County property, the Contractor must adopt, at the least, a neutrality agreement.

Under the provisions of Chapter 803, the County shall have the authority, under appropriate circumstances, to terminate the Contract and to seek other remedies as set forth therein, for violations of this Law.

Required Form:

Suffolk County Labor Law Form DOL-LO1 (Revised 2/2020); entitled "Suffolk County Department of Labor, Licensing & Consumer Affairs – Union Organizing Certification/Declaration - Subject to Audit."

4. Lawful Hiring of Employees Law

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Article II of Chapter 353 of the Suffolk County Code.

This Contract is subject to the Lawful Hiring of Employees Law of the County of Suffolk. It provides that all covered employers, (as defined), and the owners thereof, as the case may be, that are recipients of compensation from the County through any grant, loan, subsidy, funding, appropriation, payment, tax incentive, contract, subcontract, license agreement, lease or other financial compensation agreement issued by the County or an awarding agency, where such compensation is one hundred percent (100%) funded by the County, shall submit a completed sworn affidavit (under penalty of perjury), the form of which is attached, certifying that they have complied, in good faith, with the requirements of Title 8 of the United States Code Section 1324a with respect to the hiring of covered employees (as defined) and with respect to the alien and nationality status of the owners thereof. The affidavit shall be executed by an authorized representative of the covered employer or owner, as the case

may be; shall be part of any executed contract, subcontract, license agreement, lease or other financial compensation agreement with the County; and shall be made available to the public upon request.

All contractors and subcontractors (as defined) of covered employers, and the owners thereof, as the case may be, that are assigned to perform work in connection with a County contract, subcontract, license agreement, lease or other financial compensation agreement issued by the County or awarding agency, where such compensation is one hundred percent (100%) funded by the County, shall submit to the covered employer a completed sworn affidavit (under penalty of perjury), the form of which is attached, certifying that they have complied, in good faith, with the requirements of Title 8 of the United States Code Section 1324a with respect to the hiring of covered employees and with respect to the alien and nationality status of the owners thereof, as the case may be. The affidavit shall be executed by an authorized representative of the contractor, subcontractor, or owner, as the case may be; shall be part of any executed contract, subcontract, license agreement, lease or other financial compensation agreement between the covered employer and the County; and shall be made available to the public upon request.

An updated affidavit shall be submitted by each such employer, owner, contractor and subcontractor no later than January 1 of each year for the duration of any contract and upon the renewal or amendment of the Contract, and whenever a new contractor or subcontractor is hired under the terms of the Contract.

The Contractor acknowledges that such filings are a material, contractual and statutory duty and that the failure to file any such statement shall constitute a material breach of the Contract.

Under the provisions of the Lawful Hiring of Employees Law, the County shall have the authority to terminate the Contract for violations of this Law and to seek other remedies available under the law.

The documentation mandated to be kept by this law shall at all times be kept on site. Employee sign-in sheets and register/log books shall be kept on site at all times during working hours and all covered employees, as defined in the law, shall be required to sign such sign-in sheets/register/log books to indicate their presence on the site during such working hours.

Required Forms:

“SUFFOLK COUNTY DEPARTMENT OF LABOR, LICENSING, & CONSUMER AFFAIRS – NOTICE OF APPLICATION TO CERTIFY COMPLIANCE WITH FEDERAL LAW (8 U.S.C. SECTION 1324A) WITH RESPECT TO LAWFUL HIRING OF EMPLOYEES, Suffolk County Code, Chapter 353 (2006)” DOL-LHE 1 / 2 (REVISED 8/2017).

5. Gratuities

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Chapter 664 of the Suffolk County Code.

The Contractor represents and warrants that it has not offered or given any gratuity to any official, employee or agent of the County or the State or of any political party, with the purpose or intent of securing an agreement or securing favorable treatment with respect to the awarding or amending of an agreement or the making of any determinations with respect to the performance of an agreement.

6. Prohibition Against Contracting with Corporations that Reincorporate Overseas

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of sections A4-13 and A4-14 of Article IV of the Suffolk County Code.

The Contractor represents that it is in compliance with sections A4-13 and A4-14 of Article IV of the Suffolk County Code. Such law provides that no contract for consulting services or goods and services shall be awarded by the County to a business previously incorporated within the U.S.A. that has reincorporated outside the U.S.A.

7. Child Sexual Abuse Reporting Policy

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Article II of Chapter 880 of the Suffolk County Code.

The Contractor shall comply with Article II of Chapter 880, of the Suffolk County Code, entitled “Child Sexual Abuse Reporting Policy,” as now in effect or amended hereafter or of any other Suffolk County Local Law that may become applicable during the term of the Contract with regard to child sexual abuse reporting policy.

8. Non Responsible Bidder

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Article II of Chapter 189 of the Suffolk County Code.

Upon signing the Contract, the Contractor certifies that it has not been convicted of a criminal offense within the last ten (10) years. The term “conviction” shall mean a finding of guilty after a trial or a plea of guilty to an offense covered under section 189-5 of the Suffolk County Code under “Nonresponsible Bidder.”

9. Use of Funds in Prosecution of Civil Actions Prohibited

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Article III of Chapter 893 of the Suffolk County Code.

The Contractor shall not use any of the moneys, in part or in whole, and either directly or indirectly, received under the Contract in connection with the prosecution of any civil action against the County in any jurisdiction or any judicial or administrative forum.

10. Youth Sports

It shall be the duty of the Contractor to read, become familiar with, and comply with Article III of Chapter 730 of the Suffolk County Code.

All contract agencies that conduct youth sports programs are required to develop and maintain a written plan or policy addressing incidents of possible or actual concussion or other head injuries among sports program participants. Such plan or policy must be submitted prior to the award of a County contract, grant or funding. Receipt of such plan or policy by the County does not represent approval or endorsement of any such plan or policy, nor shall the County be subject to any liability in connection with any such plan or policy.

11. Work Experience Participation

If the Contractor is a not-for-profit or governmental agency or institution, each of the Contractor's locations in the County at which the Services are provided shall be a work site for public-assistance clients of Suffolk County pursuant to Chapter 281 of the Suffolk County Code at all times during the Term of the Contract. If no Memorandum of Understanding ("MOU") with the Suffolk County Department of Labor for work experience is in effect at the beginning of the Term of the Contract, the Contractor, if it is a not-for-profit or governmental agency or institution, shall enter into such MOU as soon as possible after the execution of the Contract and failure to enter into or to perform in accordance with such MOU shall be deemed to be a failure to perform in accordance with the Contract, for which the County may withhold payment, terminate the Contract or exercise such other remedies as may be appropriate in the circumstances.

12. Safeguarding Personal Information of Minors

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Suffolk County Local Law No. 20-2013, a Local Law to Safeguard the Personal Information of Minors in Suffolk County.

All contract agencies that provide services to minors are required to protect the privacy of the minors and are strictly prohibited from selling or otherwise providing to any third party, in any manner whatsoever, the personal or identifying information of any minor participating in their programs.

13. Contract Agency Performance Measures and Reporting Requirements

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of Suffolk County Local Law No. 41-2013, a Charter Law to Implement Performance Measurement to Increase Accountability and Enhance Service Delivery by Contract Agencies (Article VIII of Chapter 189 of the Suffolk County Code).

All contract agencies having a contract in excess of \$50,000 shall cooperate with the contract's administering department to identify the key performance measures related to the objectives of the service the contract agency provides and

shall develop an annual performance reporting plan. The contract agency shall cooperate with the administering department and the County Executive's Performance Management Team to establish working groups to identify appropriate performance indicators for monthly evaluation of the contract agency's performance measures.

14. Suffolk County Local Laws Website Address

Suffolk County Local Laws, Rules and Regulations can be accessed on the homepage of the Suffolk County Legislature.

15. Suffolk County Code of Ethics

As required by Suffolk County Standard Operating Procedure A-06, the following is a link to the Suffolk County Ethics Booklet, which contains the provisions of the Suffolk County Code of Ethics:

<https://suffolkcountyny.gov/Portals/0/formsdocs/Boardofethics/2%2024%20BLUE%20BOOK%20UPDATED.pdf>

16. Notification of Cyber Security Breach

It shall be the duty of the Contractor to read, become familiar with, and comply with the requirements of section A5-22 of Article V of the Suffolk County Administrative Code.

The Contractor (as defined in section A5-22) certifies that it has policies and procedures in place for the effective management of any cyber security breach, event or attack. The Contractor shall, within 48 hours, notify the Chief Information Security Officer ("CISO") at the Office of Information Technology located at William J. Lindsay County Complex – Building 50, 725 Veterans Memorial Highway, Hauppauge, New York 11788 and the Department named on the signature page of this Contract, of any cyber breach, event or attack, as defined in section A5-22 of Article V of the Suffolk County Administrative Code. The Contractor, upon completion of its investigation of the cyber breach, event or attack, shall provide a written report of the findings of the completed investigation to the CISO.

End of Text for Exhibit 2

Exhibit 3
Information Technology Provisions

These provisions shall apply if applicable to the Services rendered pursuant to the Contract. Any Conflict between any provision in this Exhibit and another provision of the Contract shall be resolved in favor of this Exhibit.

1. County Computer Network Security

A. **County Password Policy.** Contractor devices accessing the County's computer network shall be password protected. Passwords shall be at least twelve (12) characters in length and must contain characters from three (3) of the following four (4) categories: (1) English uppercase characters (A through Z); (2) English lowercase characters (a through z); (3) Base 10 digits (0 through 10); and (4) Non-alphabetic characters (for example, !, \$, #, %). Passwords are required to be changed every sixty (60) days and the new password must not be a previous password. Your name cannot be part of your password. Storing password using reversible encryption will be disabled. Accounts will be locked out after five (5) invalid logon attempts. Account lockout duration will be set to a minimum of 30 minutes and reset account lockout counter will be set to a minimum of 30 minutes. Interactive logon where users are prompted to change their password shall be set to 10 days. Any device accessing the County's computer network must lock itself with a password or pin if idle for five (5) minutes or longer. The County may disconnect the device from the computer network after the device is idle for five (5) minutes or longer.

B. Rooted (android) or jail broken (ios) devices are strictly forbidden and shall be blocked from accessing the County's network by the County.

C. The Contractor shall remote wipe the Contractor's smartphone devices utilized under this Contract if this Contract is terminated, Contractor's devices are lost and/or stolen, or there is a data/policy/virus or similar threat to the security of the County's data and technology infrastructure.

D. The County, in its sole discretion, reserves the right, without notification, to disconnect devices or disable services connected to the County's computer network should unauthorized activities be identified or if there is a potential breach of the device or the County's computer network.

E. Loss, breach or theft of devices assigned to Contractor's members or employees who perform services under this Contract must be reported by the Contractor to the Suffolk County Department of Information Technology within twenty-four (24) hours via e-mail at NetworkSecurity@suffolkcountyny.gov.

F. Contractor shall notify the Department by email prior to accessing the County's computer network.

2. Data Security

A.. Definitions. Where any word or phrase defined below, or a pronoun used in place thereof, is used in any part of this Contract in initial capital form, it shall have the meaning herein set forth below:

- i. "County Data" means all data in any format that is owned by the County or data that originated within the County that is in possession of the Contractor used to perform the Services contemplated in the Contract.
- ii. "Authorized Employees" means Contractor's employees who have a need to know or otherwise access County Data to enable the Contractor to perform its obligations under this Contract.
- iii. "Potential Security Breach" shall mean the attempted, or unsuccessful access to, or unauthorized use or disclosure of County Data under the possession or control of the Contractor pursuant to the performance of services that to any extent adversely affects the confidentiality, integrity, or availability of such Personal Information;
- iv. "Security Breach" shall mean the unauthorized access to, or unauthorized use or disclosure of, County Data under the possession or control of the Contractor pursuant to the performance of services that to any extent adversely affects the confidentiality, integrity, or availability of such County Data.
- v. "Infrastructure(s)" means the datacenters, security devices, cables, routers, switches, hosts, computer nodes, physical servers, and other equipment that the Contractor uses to host virtual servers.
- vi. "Virtual Server" means one of any number of isolated server emulations running on a single physical server located on the Infrastructure;
- vii. "Cloud Server" means an unmanaged Virtual Server that is running on the Infrastructure;

3. Standard of Care

A. Contractor acknowledges and agrees that, in the course of its engagement by County, Contractor may receive or have access to County Data. Contractor shall comply with the terms and conditions set forth in this Contract in its collection, receipt, transmission, storage, disposal, use and disclosure of such County Data and shall be responsible for the unauthorized collection, receipt, transmission, access, storage, disposal, use and disclosure of County Data under its control or in its possession by all Authorized Employees.

B. Notwithstanding Paragraph 22 of Exhibit 1, the Contractor agrees and covenants that it shall: (1) keep and maintain all County Data in strict confidence, using such degree of care as is reasonably appropriate to avoid unauthorized access, use or disclosure; (2) use and disclose County Data solely and exclusively for the purposes for which the County Data, or access to it, is provided pursuant to the terms and conditions of this Contract, and not use, sell, rent, transfer, distribute, or otherwise disclose or make available County Data for Contractor's own purposes or for the benefit of anyone other than the County, in each case, without County's prior written consent; and (3) not, directly or indirectly, disclose County Data to any person other than its Authorized Employees, including any, subcontractors, agents, outsourcers or auditors ("Unauthorized Third Parties"), without express written consent from the County unless and to the extent required by government authorities or as otherwise, to the extent expressly required, by applicable law, in which case, Contractor shall (a) notify County before such disclosure; (b) be responsible for and remain liable to County for the actions and omissions of such Unauthorized Third Parties concerning the treatment of such County Data as if they were Contractor's own actions and omissions; (4) maintain no County Data on Contractor's Infrastructure(s), Virtual Server(s) and Cloud Server(s) if applicable.

4. Information Security

A. Contractor represents and warrants that its collection, access, use, storage, disposal and disclosure of County Data does and will comply with all applicable federal, state privacy and data protection laws.

B. Contractor shall implement reasonable administrative, physical and technical safeguards to protect County Data in its possession or under its control that are no less rigorous than accepted industry practices, and shall ensure that all such safeguards, including the manner in which County Data is collected, accessed, used, stored, processed, disposed of and disclosed by Contractor, comply with applicable data protection and privacy laws, notwithstanding the terms and conditions of this Contract.

C. At a minimum, Contractor's safeguards for the protection of County Data shall include: (1) limiting access of County Data to Authorized Employees; (2) securing business facilities, data centers, paper files, servers, back-up systems and computing equipment, including, but not limited to, all mobile devices and other equipment with information storage capability; (3) implementing network, device application, database and platform security; (4) securing information transmission, storage and disposal; (5) implementing authentication and access controls within media, applications, operating systems and equipment; (6) encrypting County Data stored on any mobile media in transport; (7) encrypting County Data transmitted over public or wireless networks; (8) strictly segregating County Data from information of Contractor or its other customers so that County Data is not commingled with any other types of information; (9) implementing appropriate personnel security and integrity procedures and practices, including, but not limited to, conducting background checks consistent with applicable law; and (10) providing appropriate privacy and information security training to Contractor's employees.

5. Security Breach Procedures

A. The Contractor shall:

- i. Read, become familiar with, and comply with the requirements of Section A5-22 of Article V of the Suffolk County Administrative Code;
- ii. Notify the Department, the Suffolk County Executive, the Clerk of the Legislature, and the Suffolk County Department of Audit and Control, of a Potential Security Breach or a Security Breach immediately, but no later than twenty-four (24) hours after Contractor becomes aware of it; and
- iii. Take reasonable steps to immediately remedy any Potential Security Breach or Security Breach and prevent any further Security Breach at Contractor's expense in accordance with applicable privacy rights, laws, regulations and standards.

B. The Contractor (as defined in section A5-22) certifies that it has policies and procedures in place for the effective management of any cyber security breach, event or attack, as defined in section A5-22 of Article V of the Suffolk County Administrative Code.

C. In the event of a Security Breach, the parties shall coordinate with each other to investigate the Security Breach. The Contractor agrees to reasonably cooperate with County in County's handling of the matter, including, without limitation: (1) assisting with any investigation; (2) providing County with physical access to the facilities and operations affected; (3) facilitating interviews with Contractor's employees and others involved in the matter; and (4) making available all relevant records, logs, files, data reporting and other materials required to comply with applicable law, regulation, industry standards or as otherwise reasonably requested by County.

6. Oversight of Security Compliance

A. Upon the County's written request, to confirm compliance with this Contract, as well as any applicable laws and industry standards, Contractor shall promptly and accurately complete a written information security questionnaire provided by County or a third party on the County's behalf, who has entered into a non-disclosure agreement with Contractor, regarding Contractor's business practices and information technology environment in relation to all County Data being handled and/or services being provided by Contractor to County pursuant to this Contract. Contractor shall reasonably cooperate with such inquiries.

B. The Contractor must adhere to the County's acceptable computer use policy provided to the Contractor upon written request.

7. Data Ownership

All County data is owned exclusively by the County and will remain the property of the County. Contractor is permitted to use data solely for the purposes set forth in the Contract, and for no other purposes. At no time shall the Contractor access, use, or disclose any confidential information (including persona, financial, health, or criminal history record information or other sensitive criminal justice information) for any other purpose. The Contract is strictly prohibited from releasing or using data or information for any purposes other than those purposes specifically authorized by the county. Contractor agrees that County data shall not be distributed, used, repurposes, transmitted, exchanged or shared across other applications, environments, or business units of the contractor or otherwise passed to other contractors, agents, subcontractors or any other interested parties, except as expressly and specifically agreed to in writing by the County.

8. Data Protection and Transmission

Contractor shall use appropriate means to preserve and protect County data. This includes, but is not limited to, use of stable storage media, regular data backups and archiving, password protection of volumes, and data encryption. Contractor must, in accordance with applicable law and the instructions of the County, maintain such data for the time period required by applicable law, exercise due care for the protection of data, and maintain appropriate data integrity safeguards against the deletion or alteration of such data. In the event that any data is lost or destroyed because of any act or omission of the Contractor or any non-compliance with the obligation of this Contract, then Contractor shall, at its own expense, use its best efforts in accordance with industry standards to reconstruct such data as soon as feasible. In such event, Contractor shall reimburse the County for any costs incurred by the County in correcting, recreating, restoring, or reprocessing such data or in providing assistance therewith.

Contractor agrees that any and all County data will be stored, processed and maintained solely on designated target devices, and that no County data at any time will be processed on or transferred to any portable computing device or any portable storage medium, unless that device or storage medium is a necessary and approved component of the authorized business processes covered in the Contract and or any addendum thereof, or the Contractor's designated backup and recovery process, and is encrypted in accordance with all current federal and State statutes, regulations and requirements, to include requirement for data defined as confidential, financial information, personal private and sensitive information (PPSI), personally identifying information (PII) or personal health information (PHI) by statute or regulations. The Contractor shall encrypt data at rest, on file storage, database storage, or on back-up media, and in transit in accordance with state and federal law, rules, regulation, and requirements. The solution shall provide the ability to encrypt data in motion and at rest in compliance with state or federal law. Contractor shall use secure means (HTTPS) for all electronic transmission or exchange of system, user and application data with the County.

A. Data Return and/or Destruction

At any time during the term of this Contract at the County's written request and with notice to Contractor for any reason, or at the expiration or termination of the Contract, at the County option, the Contractor must provide the County's Information Technology Department with a copy of the County data, including metadata and attachments, in a mutually agreed upon, commercially standard format and give the County continued access to County data for no less than ninety (90) days beyond the expiration or termination of the Contract. Contractor shall comply with all reasonable directions provided by County with respect to the return or disposal of County Data.

9. WARRANTIES AND DELIVERABLES

A. *Contract Deliverables.* Contractor warrants and represents that the services required by this Contract shall be performed or provided in accordance with all the terms and conditions, covenants, statements, and representations contained in this Contract and any products acquired by the County under the terms and conditions of this Contract shall conform to the specifications in the Contract, performance standards and documentation, and the documentation fully describes the proper procedure for using the products.

Contractor further warrants and represents that

(i) if the products acquired by the County pursuant to this Contract include software application development, software application customization, software programming, software integration or similar items ("Software Deliverables") then such Software Deliverables shall be substantially free from defects in material and workmanship and will conform with all requirements of the Contract and County Agreement for the warranty period, or for a minimum of sixty (60) calendar days from the date of acceptance of the completed project, whichever is longer ("Project warranty period"), and that

(ii) Products, components or deliverables specified and furnished by or through Contractor shall individually, and where specified and furnished as a system, be substantially free from defects in material and workmanship and will conform with all requirements of the Contract for the warranty period, or for a minimum of sixty (60) calendar days from the date of acceptance of the completed project, whichever is longer ("Project warranty period").

Product offered shall be standard new equipment, current model or most recent release of regular stock product with all parts regularly used with the type of equipment offered. Contractor further warrants and represents that no attachment or part has been substituted or applied contrary to the manufacturer's recommendations and standard practice.

Contractor also warrants that the Products, in the form provided to the County, do not infringe any copyright, trademark, trade secret or other right of any third party.

B. Title and Ownership. Contractor warrants and represents that it has (i) full ownership, clear title free of all liens, or (ii) the right to transfer or deliver specified license rights to any Products acquired by County under this Contract. Contractor shall be solely liable for any costs of acquisition associated therewith. Contractor shall indemnify the County and hold the County harmless from any damages and liabilities (including reasonable attorneys' fees and costs) arising from any breach of Contractor's warranties as set forth herein.

C. Product Warranty for Deliverables. During the Project warranty period, defects in the materials or workmanship of components or deliverables specified and furnished by or through Contractor shall be repaired or replaced by Contractor at no cost or expense to the County. In the alternative, if the County determines that Contractor cannot correct such defects within a reasonable time or in a reasonable manner, the County may, in its sole discretion, end its license or return the Product and recover the fees paid to the Contractor for the license or Product. Contractor shall extend the Project warranty period for individual component(s), or for the system as a whole, as applicable, by the cumulative period(s) of time, after notification, during which an individual component or the system requires servicing or replacement (down time) or is in the possession of the Contractor, its agents, officers, Subcontractors, distributors, resellers or employees ("extended warranty").

The Commissioner agrees that Contractor is not responsible for any modification of the Products made by the County without Contractor's approval.

D. Replacement Parts Warranty. If during the regular or extended warranty periods, parts or components break or fail to perform as intended, the Contractor shall promptly repair or, upon demand, replace the defective unit or component part affected. All costs for labor and material and transportation incurred to repair or replace defective Product during the warranty period(s) shall be borne solely by the Contractor, and the State or County shall in no event be liable or responsible therefor.

Any Product or parts thereof replaced by the Contractor under the Contract warranty shall be replaced at no cost to the County and guaranteed for the greater of: a) the Warranty Period set forth under paragraph (a) above; or b) if a separate warranty for that Product or parts thereof is generally offered by the manufacturer, the standard commercial warranty period offered by the manufacturer for the individual part or component.

E. Virus Warranty. The Contractor represents and warrants that any Product acquired by the County does not contain any known viruses. Contractor is not responsible for viruses introduced at the County's site.

F. Date/Time Warranty. Contractor warrants that Product furnished pursuant to this Contract shall, when used in accordance with the Product documentation, be able to accurately process date/time data (including, but not limited to, calculating, comparing, and sequencing) transitions, including leap year calculations. Where a Contractor proposes or an acquisition requires that specific Products must perform as a package or system, this warranty shall apply to the Products as a system.

Where Contractor is providing ongoing services, including but not limited to: i) consulting, integration, code or data conversion, ii) maintenance or support services, iii) data entry or processing, or iv) contract administration services (e.g., billing, invoicing, claim processing), Contractor warrants that services shall be provided in an accurate and timely manner without interruption, failure or error due to the inaccuracy of Contractor's business operations in processing date/time data (including, but not limited to, calculating, comparing, and sequencing) various date/time transitions, including leap year calculations. Contractor shall be responsible for damages resulting from any delays, errors or untimely performance resulting therefrom, including but not limited to the failure or untimely performance of such services.

This Date/Time Warranty shall survive beyond termination or expiration of this contract as long as the Product is used by the County. Nothing in this warranty statement shall be construed to limit any rights or remedies otherwise available under this Contract for breach of warranty.

G. Workmanship Warranty. Contractor warrants that the services acquired under this Contract will be provided in a professional and workmanlike manner in accordance with any applicable industry standards. The County must notify Contractor of any services warranty deficiencies within ninety calendar days from performance of the services that gave rise to the warranty claim.

H. Miscellaneous. The County shall promptly notify the Contractor and the Commissioner in writing of any claim of breach of any warranty provided herein.

The rights and remedies of the County provided in this section are in addition to and do not limit any rights afforded to the County by any other clause of the Contract.

I. Survival of Warranties. All warranties contained in this Contract, which have not expired by their terms, shall survive the termination of this Contract.

J. No Implied Warranties. To the extent permitted by law, these warranties are exclusive and there are no other express or implied warranties or conditions, including warranties or conditions of merchantability and fitness for a particular purpose.

K. Compliance with laws. Contractor warrants and represents that, throughout the term of the contract, in the performance of its obligations under the contract, it will: (i) comply with all applicable laws, ordinances, rules and regulations of any governmental entity; (ii) pay, at its sole expense, all applicable permits, licenses, tariffs, tolls and fees; and (iii) give all notices required by any laws, ordinances, rules, and regulations of any governmental entity.

10. SOFTWARE LICENSE GRANT

Where Product is acquired on a licensed basis the following shall constitute the license grant:

A. *License Scope.* County is granted a non-exclusive, perpetual license (or, at the option of the County, term license) to use, execute, reproduce, display, perform, or merge the Product within its business enterprise in the United States up to the maximum licensed capacity stated on the Contract. Product may be accessed, used, executed, reproduced, displayed or performed up to the capacity measured by the applicable licensing unit stated in the Contract (i.e., payroll size, number of employees, CPU, MIPS, MSU, concurrent user, workstation). County shall have the right to use and distribute modifications or customizations of the Product, provided that any modifications, however extensive, shall not diminish Licensor's proprietary title or interest. No license, right or interest in any trademark, trade name, or service mark is granted hereunder.

B. *License Term.* The License Term shall commence upon the License Effective Date, provided, however, that where an acceptance or trial period applies to the Product, the License Term shall be extended by the time period for testing, acceptance or trial.

C. *Licensed Documentation.* If commercially available, County shall have the option to require the Contractor to deliver, at Contractor's expense: (i) one (1) hard copy and one (1) master electronic copy of the Documentation in a mutually agreeable format; (ii) hard copy instructions for access by downloading from the Internet (iii) hard copies of the Product Documentation by type of license in the following amounts, unless otherwise mutually agreed:

- Individual/Named User License - one (1) copy per License
- Concurrent Users - 10 copies per site
- Processing Capacity - 10 copies per site

Software media must be in a format specified by the County, without requiring any type of conversion.

Contractor hereby grants to County a perpetual license right to make, reproduce (including downloading electronic copies of the Product) and distribute, either electronically or otherwise, copies of Product Documentation as necessary to enjoy full use of the Product in accordance with the terms of license.

D. *Product Technical Support & Maintenance.* County shall have the option of electing the Product technical support and maintenance ("maintenance") set forth in the Contract by giving written notice to Contractor any time during the term.

Unless otherwise provided by written agreement between the Contractor and the County, maintenance shall include, at a minimum, (i) the provision of error corrections, updates, revisions, fixes, upgrade and new releases to County, and (ii) Help Desk assistance with locally accessible "800" or toll free, local telephone service, or alternatively on-line Help Desk accessibility. Contractor shall maintain the Products so as to provide County with the ability to utilize the Products in accordance with the Product Documentation without significant functional downtime to its ongoing business operations during the maintenance term.

The County shall not be required to purchase maintenance for use of Product, and may discontinue maintenance at the end of any current maintenance term upon notice to Contractor. In the event that County does not initially acquire or discontinues maintenance of licensed Product, it may, at any time thereafter, reinstate maintenance for Product without any additional penalties or other charges, by paying Contractor the amount which would have been due under the Contract for the period of time that such maintenance had lapsed, at then current applicable net maintenance rates. Contractor is required to submit written notification to the County of the upcoming maintenance end date no later than sixty (60) calendar days prior to such maintenance end date.

E. *Permitted License Transfers.* As County's business operations may be altered, expanded or diminished, licenses granted hereunder may be transferred or combined for use at an alternative or consolidated site not originally specified in the license, including but not limited to transfers within departments, between departments, and transfers pursuant to a governmental restructuring or reorganization ("permitted license transfers"). The County does not have to obtain the approval of Contractor for permitted license transfers, but must give thirty (30) days prior written notice to Contractor of such transfer. There shall be no additional license or other transfer fees due Contractor, provided that: i) the maximum capacity of the consolidated machine is equal to the combined individual license capacity of all licenses running at the consolidated or transferred site (e.g., named users, seats, or MIPS); or ii) if the maximum capacity of the consolidated machine is greater than the individual license capacity being transferred, a logical or physical partition or other means of restricting access will be maintained within the computer system so as to restrict use and access to the Product to that unit of licensed capacity solely dedicated to beneficial use for County. In the event that the maximum capacity of the consolidated machine is greater than the combined individual license capacity of all licenses running at the consolidated or transferred site, and a logical or physical partition or other means of restricting use is not available, the fees due Contractor shall not exceed the fees otherwise payable for a single license for the upgrade capacity.

F. *Restricted Use By Third Parties.* Third parties retained by the County shall have the right to use the Product to maintain County's business operations, including data processing, for the time period that they are engaged in such activities, provided that: (i) County gives notice to Contractor of such party, site of intended use of the Product, and site of intended use of the Product and means of access; and (ii) if required by Contractor, such third party has executed, or agrees to execute Contractor's standard nondisclosure or restricted use agreement ("Non-Disclosure Agreement"); and 3) if such party is engaged in the business of facility management, outsourcing, service bureau or other services, such third party will maintain a logical or physical partition within its computer system so as to restrict use and access to the program to that portion solely dedicated to beneficial use for County. In no event shall the county assume any liability for third party's compliance with the terms of the Non-Disclosure Agreement, nor shall the Non-Disclosure Agreement create or impose any liabilities on the County.

G. *Archival Back-Up and Disaster Recovery.* County may use and copy the Product and related Documentation in connection with: i) reproducing a reasonable number of copies of the Product for archival backup and disaster recovery procedures in the event of destruction or corruption of the Product or disasters or emergencies which require County to restore backup(s) or to initiate disaster recovery procedures for its platform or operating systems; ii) reproducing a reasonable number of copies of the Product and related Documentation for cold site storage. "Cold Site" storage shall be defined as a restorable back-up copy of the Product not to be installed until and after the declaration by the County

of a disaster. "Disaster Recovery" shall be defined as the installation and storage of Product in ready-to-execute, back-up computer systems prior to disaster or breakdown which is not used for active production or development.

H. *Confidentiality Restrictions.* The Product is a trade secret, copyrighted and proprietary product. County and its employees will keep the Product strictly confidential, and County will not disclose or otherwise distribute or reproduce any Product to anyone other than as authorized under the terms of Contract. County will not remove or destroy any proprietary markings of Contractor.

I. *Restricted Use by County.* Except as expressly authorized by the terms of the license, County shall not:

- (i) Copy the Product;
- (ii) Cause or permit reverse compilation or reverse assembly of all or any portion of the Product;
- (iii) Export the Licensed Software in violation of any U.S. Department of Commerce export administration regulations.

11. PRODUCT ACCEPTANCE

A. Unless otherwise provided by mutual agreement of the County and the Contractor in the Agreement, County shall have thirty (30) days from the date of delivery to accept hardware Products and sixty (60) days from the date of delivery to accept all other Product. Where the Contractor is responsible for installation, acceptance shall be from completion of installation. Title or other property interest and risk of loss shall not pass from Contractor to the County until the Products have been accepted. Failure to provide notice of acceptance or rejection or a deficiency statement to the Contractor by the end of the period provided for under this clause constitutes acceptance by the Authorized User(s) as of the expiration of that period. The License Term shall be extended by the time periods allowed for trial use, testing and acceptance unless the Commissioner or Authorized User agrees to accept the Product at completion of trial use.

B. Unless otherwise provided by mutual agreement of the County and the Contractor, County shall have the option to run testing on the Product prior to acceptance, such tests and data sets to be specified by User. Where using its own data or tests, County must have the tests or representative set of data available upon delivery. This demonstration will take the form of a documented installation test, capable of observation by the County, and shall be made part of the Contractor's standard documentation. The test data shall remain accessible to the County after completion of the test.

C. In the event that the documented installation test cannot be completed successfully within the specified acceptance period, and the Contractor or Product is responsible for the delay, County shall have the option to cancel the order in whole or in part, or to extend the testing period for an additional thirty (30) day increment. The County shall notify Contractor of acceptance upon successful completion of the documented installation test. Such cancellation shall not give rise to any cause of action against the County for damages, loss of profits, expenses, or other remuneration of any kind.

D. If the County elects to provide a deficiency statement specifying how the Product fails to meet the specifications within the testing period, Contractor shall have thirty (30) days to correct the deficiency, and the Authorized User shall have an additional sixty (60) days to evaluate the Product as provided herein. If the Product does not meet the specifications at the end of the extended testing period, Authorized User, upon prior written notice to Contractor, may then reject the Product and return all defective Product to Contractor, and Contractor shall refund any monies paid by the county to Contractor therefor. Costs and liabilities associated with a failure of the Product to perform in accordance with the functionality tests or product specifications during the acceptance period shall be borne fully by Contractor to the extent that said costs or liabilities shall not have been caused by negligent or willful acts or omissions of the County's agents or employees. When Product is not accepted, it must be removed by the Contractor from the premises within ten calendar days of notification of non-acceptance by the County. Rejected items not removed by the Contractor within the ten calendar day period shall be regarded as abandoned by the Contractor and the County shall have the right to dispose of Product as its own property. The Contractor shall promptly reimburse the County for any costs incurred in storage or effecting removal or disposition after the ten calendar day period.

12. AUDIT OF LICENSED PRODUCT USAGE

Contractor shall have the right to periodically audit, no more than annually, at Contractor's expense, use of licensed Product at any site where a copy of the Product resides provided that: (i) Contractor gives County(s) at least thirty (30) days advance written notice, (ii) such audit is conducted during such party's normal business hours, (iii) the audit is conducted by an independent auditor chosen on mutual agreement of the parties. Contractor shall recommend a minimum of three (3) auditing/accounting firms from which the County will select one (1). In no case shall the Business Software Alliance (BSA), Software Publishers Association (SPA), Software and Industry Information Association (SIIA) or Federation Against Software Theft (FAST) be used directly or indirectly to conduct audits, or be recommended by Contractor; (iv) Contractor and County are each entitled to designate a representative who shall be entitled to participate, and who shall mutually agree on audit format, and simultaneously review all information obtained by the audit. Such representatives also shall be entitled to copies of all reports, data or information obtained from the audit; and (v) if the audit shows that such party is not in compliance, County shall be required to purchase additional licenses or capacities necessary to bring it into compliance and shall pay for the unlicensed capacity at the NYS Net Price in effect at time of audit, or if none, then at the Contractor's U.S. Commercial list price. Once such additional licenses or capacities are purchased, County shall be deemed to have been in compliance retroactively, and County shall have no further liability of any kind for the unauthorized use of the software.

13. OWNERSHIP/TITLE TO PROJECT DELIVERABLES

Contractor acknowledges that it is commissioned by the County to perform the services detailed in this Contract, which may include the development of intellectual property by Contractor, its subcontractors, partners, employees or agents for the County ("Custom Products"). Unless otherwise specified in writing, upon creation of such Custom Products, Contractor hereby conveys, assigns and transfers to the County sole and exclusive rights, title and interest in the Custom Product, whether preliminary, final or otherwise, including all trademark and copyrights. Contractor hereby agrees to take all necessary and appropriate steps to ensure that the Custom Products are protected against unauthorized copying, reproduction and marketing by or through Contractor, its agents, employees, or subcontractors. Nothing herein shall preclude the Contractor from otherwise using the related or underlying general knowledge, skills, ideas, concepts, techniques and experience developed in performing services under the Contract in the course of Contractor's business. The County may, by providing written notice thereof to the Contractor, elect in the alternative to take a non-exclusive perpetual license to Custom Products in lieu of taking exclusive ownership and title to such products. In such case, the County shall be granted a non-exclusive perpetual license to use, execute, reproduce, display, perform, adapt and distribute Custom Product as necessary to fully effect the general business purpose(s) for which the contract was awarded.

- (i) Hardware - Title and ownership of Existing Hardware Product shall pass to the County upon Acceptance.
- (ii) Software - Title and ownership to existing software product(s) delivered by Contractor or other third party proprietary owner, whether or not embedded in, delivered or operating in conjunction with hardware or Custom Products, shall remain with Contractor or the proprietary third party. Effective upon acceptance, such existing software shall be licensed to the County in accordance with the Contractor or third party software owner's standard license agreement, provided, however, that such standard license, must, at a minimum: (a) grant the County a non-exclusive, perpetual license to use, execute, reproduce, display, perform, adapt (unless Contractor advises County as part of Contractor's proposal that adaptation will violate existing agreements or statutes and Contractor demonstrates such to the County's satisfaction) and distribute existing software to the County up to the license capacity stated in the Contract, with all license rights necessary to fully effect the general business purpose(s) stated in the Contract. With regards to third party software, the Contractor shall be responsible for obtaining these rights at its sole cost and expense.
- (iii) Other - Contractor grants to the County a worldwide, non-exclusive, royalty-free, perpetual license to use, reproduce, display, distribute copies of, and prepare derivative works of any Contractor existing products embodied in the deliverables which are not covered in 1 or 2 above.

14. NO HARDSTOP/PASSIVE LICENSE MONITORING

Contractor hereby warrants and represents that the product and all upgrades do not and will not contain any computer code that would disable the Product or upgrades or impair in any way its operation based on the elapsing of a period of time, exceeding an authorized number of copies, advancement to a particular date or other numeral, or other similar self-destruct mechanisms (sometimes referred to as "time bombs," "time locks," or "drop dead" devices) or that would permit Contractor to access the Product to cause such disablement or impairment (sometimes referred to as a "trap door" device). Contractor agrees that in the event of a breach or alleged breach of this provision that County shall not have an adequate remedy at law, including monetary damages, and that County shall consequently be entitled to seek a temporary restraining order, injunction, or other form of equitable relief against the continuance of such breach, in addition to any and all remedies to which County shall be entitled.

15. SOURCE CODE ESCROW FOR LICENSED PRODUCT

If source code or source code escrow is offered by either Contractor or Product manufacturer or developer to any other commercial customers, Contractor shall either: (i) provide the County with the source code for the licensed product; or (ii) place the source code in a third party escrow arrangement with a designated escrow agent who shall be named and identified to the County, and who shall be directed to release the deposited Source Code in accordance with a standard escrow agreement acceptable to the County; or (iii) will certify to the County that the licensed Product manufacturer/developer has named the County as a named beneficiary of an established escrow arrangement with its designated escrow agent who shall be named and identified to the County, and who shall be directed to release the deposited source code in accordance with the terms of escrow. Source code, as well as any corrections or enhancements to such source code, shall be updated for each new release of the Product in the same manner as provided above and such updating of escrow shall be certified to the State in writing. Contractor shall identify the escrow agent upon commencement of the Contract term and shall certify annually that the escrow remains in effect in compliance with the terms of this clause.

16. ADDITIONAL INSURANCE REQUIREMENTS

A. Data Breach and Privacy/Cyber Liability. Contractors are required to maintain during the term of this Contract and as otherwise required herein, Data Breach and Privacy/Cyber Liability Insurance, including coverage for failure to protect confidential information and failure of the security of the Contractor's computer systems or the county's systems due to the actions of the Contractor, which result in unauthorized access to the County or its data. Said insurance shall be maintained in the following limits, as applicable:

- i. Software \$1,000,000
- ii. Hardware \$1,000,000
- iii. Cloud \$2,000,000

This insurance shall provide coverage for damages arising from, but not limited to, the following:

- Breach of duty to protect the security and confidentiality of nonpublic proprietary corporate information;
- Personally identifiable nonpublic information;
- Privacy notification costs;
- Regulatory defense and penalties;
- Website media liability; and
- Cyber theft of customer's property, including but not limited to money and securities.

If the policy is written on claims made basis, Contractor must submit to the County an Endorsement providing proof that the policy provides the option to purchase an Extended Reporting Period ("tail coverage") providing coverage for no less than one (1) year after work is completed in the event that coverage is cancelled or not renewed. This requirement applies to both primary and excess liability policies, as applicable.

B. Technology Errors and Omissions. Contractors are required to maintain during the term of the Contract and as otherwise required herein, Technology Errors and Omissions Insurance. Said insurance shall be maintained in the following limits, as applicable:

- i. Software \$1,000,000
- ii. Hardware \$1,000,000
- iii. Cloud \$2,000,000

This insurance shall provide coverage for damages arising from computer related services including, but not limited to the following:

- Consulting;
- Data processing;
- Programming;
- System integration;
- Hardware or software development;
- Installation;
- Distribution or maintenance;
- Systems analysis or design;
- Training;
- Staffing or other support services; and
- Manufactured, distributed, licensed, marketed or sold cloud computing services.

The policy shall include coverage for third party fidelity including cyber theft.

If the policy is written on claims made basis, Contractor must submit to the County an Endorsement providing proof that the policy provides the option to purchase an Extended Reporting Period ("tail coverage") providing coverage for no less than one (1) year after work is completed in the event that coverage is cancelled or not renewed. This requirement applies to both primary and excess liability policies, as applicable.

17. Transition

The County may require the Contractor to provide uninterrupted Services after Contract termination/expiration ("Transition Services") as the County deems reasonable and necessary for the County to comply with all legal requirements for establishing a new contract and transitioning to a replacement Contractor.

- i. *Transition Period.* The County shall determine the transition period in consultation with the Contractor and shall notify the Contractor in writing. The County reserves the right to amend the transition period subsequently, upon thirty (30) days' advance written notice to the Contractor.
- ii. *No Interruption in Service.* At all times during the transition period, and unless directed otherwise by the County, the Contractor shall continue its contractual obligations set forth in the Contract until such time as the services provided under the contract have been transitioned to a successor contractor, the County, or a third party designated by the County. The Contractor shall be required to meet its contractual obligations pursuant to this paragraph notwithstanding the issuance of a termination for cause or convenience by the County.
- iii. *Transition Plan.* Within fifteen (15) days of receipt of a notice of termination or three (3) months prior to the end of the term of the Contract, whichever event occurs first, the Contractor shall submit to the County for the County's review and approval a detailed written plan for transition ("Transition Plan") that outlines, at a minimum, the tasks, milestones, and deliverables associated with a smooth transition of Services.
- iv. *Contractor Transition Services.* Transitions Services shall include the performance of Contractor's responsibilities as outlined in the Contract, and also the transferring of those responsibilities to a successor contractor, the county, or a third party designated by the county in accordance with the Transition Plan agreed upon by the Parties. Contractor shall maintain the same level of service during the transition period as is set forth in the Contract until specific tasks or services are transitions to or assumed by a successor contractor, the County, or a third party designated by the County.

- v. *Cooperation.* Contractor shall cooperate with the County to facilitate a smooth and orderly transition. Periodic project review meetings shall be held with representatives of the Contractor, a successor contractor, the County, or a third party designated by the County.

18. Dispute Resolution

- a. In the event of any dispute, controversy or claim with respect to the interpretation of any provision of this Contract or the performance of either party thereunder, the objection shall be documented in writing by either the County project manager or the Contractor's project manager and issued to the other project manager, with copies to the Agency.
- b. In the event the dispute, controversy or claim is not resolved, within four (4) calendar days, between the County's project manager and the Contractor's project manager, then and in that event, upon the written request of either party, the dispute, controversy or claim shall be discussed ("Discussion Period") by a designee of the Agency and a Vice President level or higher of the Contractor, in consultation with the Commissioner of the Suffolk County Department of Information Technology. Such Discussion Period may continue for so long as both parties are willing to continue. At any point during such Discussion Period, the County may issue a "Termination Notice" in accordance with and as set forth in paragraph 9.a of Exhibit 1 of the Contract.

19. Change Orders

Any changes requested by either the Contractor or the County to the Scope of Work ("SOW") must be communicated in writing in accordance with the procedures specified in the SOW. Any proposed changes to the SOW that causes an increase in the cost to the County shall not become binding until both the County and the Contractor agree to such changes and amend the SOW and Contract in writing, and is signed by the Contractor and the Commissioner or his designated representative of the Agency.

End of Exhibit 3

Section VI

Suffolk County Required Compliance Forms In Accordance with County Laws

The following forms will be required from the apparent successful Proposer only upon request. Please note that while the forms can be uploaded to the Suffolk County Bonfire portal, the apparent successful Proposer will be required to submit original, signed forms:

- LL52-2012 – Disqualification of Non-responsible Bidders
- Suffolk County Form 22 – Contractor's/Vendor's Public Disclosure Statement
- FTS Form – Non-Collusive Offer Certification
- LHE-1/2 Form – Lawful Hiring
- LW 1/38 Form – Suffolk County Living Wage
- DOL-L01- Suffolk County Union Organizing Certification/Declaration
- Lobbying Certification Form